

AMENDED STATEMENT OF DEFENCE

**BEFORE THE HON'BLE SOLE ARBITRATOR MR. NITIN
N.N. SARDESSAI AT PANAJI GOA**

IN THE MATTER OF ARBITRATION BETWEEN:

MR. VIKRAM SHAH ...Claimant

V/s.

MR. RIVA TRINDADE & 3 Ors. ...Respondents

**STATEMENT OF DEFENCE OF THE
RESPONDENT NOS. 1, 2 AND 3 UNDER
SECTION 23 OF THE ARBITRATION
AND CONCILIATION ACT, 1996.**

MAY IT PLEASE YOUR LORDSHIP:

The Respondent Nos. 1, 2 and 3 above named most respectfully
beg to state and submit as under:

1. At the outset, the statement of claim filed by the Claimant is
bad in law and is liable to be dismissed in limine for the
following reasons:

PRELIMINARY OBJECTIONS

- a. The statement of claim is bereft of any cause of action, to
warrant the exercise of Jurisdiction by this Hon'ble

Tribunal in exercise of powers under the provisions of the Arbitration and Conciliation Act, 1996.

- b. The dispute in respect of which the statement of claim has been filed is with respect, frivolous in as much as the claimant has no legitimate and/or subsisting legal cause of action for want of any live and/or subsisting dispute which is capable of being arbitrated upon, in as much as the dispute with respect which has been referred to arbitration before this Hon'ble Tribunal with respect is non-arbitrable.
- c. The statement of claim filed before this Hon'ble Tribunal has been filed with unclean hands by suppressing vital and material facts from this Hon'ble Tribunal, which would disentitle the Claimant to the grant of any reliefs by this Hon'ble Tribunal.
- d. The statement of claim which has been filed before this Hon'ble Tribunal is filed in purported pursuance of the invocation of the Arbitration Clause contained in Clause

35 of the Articles of Association dated 01.04.2013, in purported pursuance to the letter dated 28.02.2024, whereby the said Arbitration Clause has been sought to be invoked by the Claimant, but however the reliefs as sought for by the Claimant are inter alia in respect of the Memorandum of Understanding dated 06.06.2006 which contains an independent arbitration cause at Clause 17 of the said Instrument and consequently the dispute is not arbitrable in the absence of the parties to the said document, namely Pravar Trade Invest Private Limited and M/s. Sumer Builders Private Limited, who have had equal share holding in the ratio of 50-50 in the said M/s. Loonkar Developers Private Limited.

- e. Further, the reliefs as sought for by the Claimant are also inter alia in respect of the property bearing Survey No. 93/3 of the village of Bambolim, the subject matter of the Joint Venture Agreement dated 25.04.2014, which contains an independent arbitration agreement at Clause 27 of the said Instrument and consequently the dispute

which is sought to be made as the subject matter of the present arbitration proceedings is not arbitrable in the absence of M/s. Kuval Projects Private Limited.

2. With regard to the contents of the Statement of Claim, at the outset, the Respondent denies all and singular the statements and contentions made in the Statement of Claim, as if the same were set out herein in extensor and traversed. Nothing therein contained shall be deemed to be admitted by these Respondents, unless expressly done so, suffice it to say that the contents of the Statement of Claim which are not specifically dealt with and/or may have escaped specific denial may be taken as denied.
3. Without prejudice to the above, the Respondent Nos. 1, 2 and 3 shall deal with the contents of the Statement of Claim.
4. With regards to contents of Para 1, the Respondent Nos. 1, 2 and 3 deny the contents thereof.

5. With regards to contents of Para 2, 3, 4 and 5 the contents thereof are substantially true. As a fact, although the Claimant and late Pascoal Trindade formed various commercial entities for various projects which were undertaken by them on mutual understanding and they having been in construction and development since 1990, subsequent to the death of Pascoal Trindade on 17.01.2022, the Respondent Nos. 1, 2, and 3 have not been given access to the status and/or affairs of the business, so as to ascertain and/or know their entitlement in the said stakes of the business.
6. In fact, subsequent to the death of late Pascoal Trindade, the Respondent Nos. 1, 2, and 3 as his legal heirs and being entitled to the balance standing in his capital and current account as on the date of his death have not even been paid the amount legitimately due and payable to the Respondent Nos. 1, 2, and 3 being his legal heirs and being entitled as expressly covenanted under Clause 28 and 29 of the Articles of Association dated 01.04.2013.

6A. Respondent No. 2 has been brought on record solely in her capacity as one of the legal heirs of Late Pascoal Trindade and not in her individual capacity. Undeniably, Respondent No. 2 and Late Pascoal Trindade were married under the regime of communion of assets. Consequently, during the lifetime of Late Pascoal Trindade, Respondent No. 2 was a moiety holder and co-owner of the subject property in her own independent right. The rights, title, interest, entitlement and possession of Respondent No. 2 in respect of the subject property were neither the subject matter of, nor intended to be governed by, the Articles of Association relied upon by the Claimants. The said Articles of Association neither contemplated nor dealt with the independent proprietary rights of Respondent No. 2 in the subject property.

6B. The existence of the regime of communion of assets between Respondent No. 2 and Late Pascoal Trindade is undeniable. It is further admitted that Respondent No. 2 was never a

party to the Articles of Association relied upon by the Claimants.

6C. The Respondent states that her independent rights, title, interest, entitlement, and possession as a moiety holder were never contributed to, vested in, or made subject to the Articles of Association. Consequently, and without prejudice to the contention that Respondent No. 2 has been impleaded only in her capacity as a legal representative of Late Pascoal Trindade, her independent proprietary rights as a moiety holder do not fall for adjudication in the present proceedings.

6D. In any event, even assuming that Respondent No. 2 is a veritable party to the present arbitral proceedings by virtue of her status as a legal representative of Late Pascoal Trindade, the scope of such representation can extend only to the rights, obligations, and liabilities of Late Pascoal Trindade. The independent rights and entitlements vested in Respondent No. 2 as a moiety holder in her own right cannot

be adjudicated upon, curtailed, extinguished, or otherwise affected in the present proceedings as sought to be done by the Claimants.

7. As a fact, subsequent to the death of late Pascoal Trindade on 17.01.2022, the Respondent No. 1 had a couple of meetings with the Claimant concerning the entitlement of the Respondent No. 1, 2, and 3, so as to understand, ascertain and/or know their entitlement in the said stakes of the business and the entitlement of the Respondent Nos. 1, 2, and 3 in the capital and current account as on the date of his death, and the shares in the properties.
8. As a fact, since there was no positive response and/or disclosure coming forth, the Respondent No. 1 subsequent to the meeting with the Claimant on 28.02.2023 at the Bambolim Office, by a letter dated 18.03.2023 requested the Claimant to furnish with copies of the documents and financial statements concerning the business and various companies and AOPs in which late Pascoal Trindade had

investments, so as to enable the Respondent Nos. 1, 2, and 3 to understand and ascertain the financial status of various entities viz. Paramount Buildwell Construction Private Limited (Ocean Park Project and Emperor's Boulevard Project), Pravar Trade Invest Private Limited, Pastina Holiday Homes, and Shivam Holiday Homes.

9. Despite the request for the said balance sheets and profit and loss accounts, and the bank statements which were agreed to be provided by the Claimant to the Respondent No. 1, the same were not furnished and accordingly by the said letter dated 18.03.2023, addressed to the Claimant the request for the said documents and information was renewed. Hereto annexed and marked as **ANNEXURE R1-A** is a copy of the said letter dated 18.03.2023.
10. In response to the said letter dated 18.03.2023, the Claimant far from furnishing the information and statements as agreed at the meeting dated 28.02.2023, insisted upon appointment of two mediators to conclude the matters with a requirement

of a clear mandate to accept the award, which was virtually a demand, without even affording an opportunity to the Respondent No. 1 to ascertain and understand the status of the affairs concerning the business and various commercial entities for various projects undertaken by Late Pascoal Trindade with the Claimant. It is pertinent to point out that although in the said letter dated 30.03.2023, the soft copies of the last audited balance sheets for the companies was stated to be forwarded on a pen drive, factually no such pen drive was enclosed with the said letter and/or furnished and/or handed over to the Respondent No. 1. Hereto annexed and marked as **ANNEXURE R1-B** is a copy of the said letter dated 30.03.2023.

11. As a fact, in response to the said letter dated 30.03.2023 addressed to the Claimant, the Respondent No. 1 by letter dated 12.04.2023, whilst expressing astonishment to the proposal for mediation, instead of furnishing the requested document/details, reiterated the request for audited accounts and bank statements, since inception to understand and

comprehend the financial position of the Private Limited companies and the AOPs, more particularly since the same contained substantial and significant investments made by late Pascoal Trindade and pointed out that the same were very much valid and that the refusal/denial of the audited accounts and bank statements was not justified. Annexed hereto and marked as **ANNEXURE R1-C** is the letter dated 12.04.2023.

12. Faced with the said situation, by a letter dated 04.07.2023 addressed to the Claimant the Respondent No. 1 expressed that the Claimant for reasons best known to the Claimant was avoiding disclosing the accounts and bank statements of the private limited companies and the AOPs, renewed and reiterated the request made in the earlier letter dated 18.03.2023 with a request to provide the audited accounts and bank statements so that things could move forward. Hereto annexed and marked as **ANNEXURE R1-D** is a copy of the said letter dated 04.07.2023.

13. By a letter dated 14.07.2023, addressed to the Respondent No. 1, the Claimant resisted the disclosure of the said statements on a specious plea of non-cooperation by the Respondent No. 1 and sought to claim difficulty to him and his family to safeguard/salvage the benefits in the event of continued non- cooperation of the Respondent No. 1. Hereto annexed and marked as **ANNEXURE R1-E** is a copy of the said letter dated 14.07.2023.
14. Pertinently, the copy of the Articles of Association dated 01.04.2013 produced by the Claimant at Annexure-A is incomplete, in as much as the copy of the said document furnished to these Respondents does not contain the second page of the said document.
15. Further, the copy of the said instrument produced before this Hon'ble Tribunal does not correspond and/or match with the copy of the Articles of Association as had been produced before the Hon'ble High Court in Application for Appointment of Arbitrator No. 13/2024 and the same is

obvious from the fact that the photographs of the parties to the said Articles of Association are not contained in the copy of the Articles of Association as had been produced at Annexure-A in the said Application Appointment of Arbitrator No. 13/2024. Annexed hereto and marked as **ANNEXURE R1-F** is a copy of the Articles of Association dated 01.04.2013 produced at Annexure-A in the said Application Appointment of Arbitrator No. 13/2024 filed in the High Court of Bombay at Goa.

16. With regards to contents of Para 6, the contents thereof under (a) to (ee) are specifically denied and the Claimant is put to strict proof thereof. Further, the interpretation of the clauses as contended and sought to be suggested by the Claimant is specifically denied as being false and distorted, the distortion of which is apparently for deliberate and obvious reasons and these Respondents crave leave of this Hon'ble Tribunal to refer and rely on the contents of the said Articles of Association dated 01.04.2013 for its true scope, intent and meaning.

17. With reference to the Articles of Association dated 01.04.2013 entered into between the Claimant, late Pascoal Trindade, and the Respondent No. 4 herein, it is pertinent to point out that said document records the terms and conditions agreed upon by the parties to govern their association which was not a partnership, and which was in fact formed with a view to earn income from the development and/or sale of the properties bearing Survey Nos. 93/3 and 93/4 of the Village of Bambolim, admeasuring 26,825 sq. mtrs. and 35,600 sq. mtrs., respectively, which properties have been referred to in the Articles of Association dated 01.04.2013 as the *Schedule I Property* and *Schedule II Property* respectively, and found better described in Schedule I and Schedule 2 to the said Articles of Association dated 01.04.2013.

17A. Without prejudice to the aforesaid, the Articles of Association are neither registered nor stamped in accordance with law. In any event, the provisions contained therein,

particularly those pertaining to entitlement, vesting, cessation, and devolution of rights, are neither binding upon nor enforceable against Respondent No. 2. The same cannot otherwise defeat the proprietary rights and entitlements vested in Respondent No. 2 under the law governing communion of assets, which rights existed independently of and de hors the Articles of Association. Consequently, the said Articles of Association cannot, by themselves, create, extinguish, curtail, transfer, encumber, or otherwise affect the independent rights, title, interest, entitlement, and possession of Respondent No. 2 in respect of the subject property.

18. It is stated and submitted that though under Clause 4 of the Articles of Association dated 01.04.2013, the Books of Accounts of the Association were to be closed on 31.03.2014 for the first time and thereafter the Books of Accounts were to be closed on 31st March every year, the same was apparently not effected for a fact that subsequent to the death of Pascoal Trindade who expired on 17.01.2022,

and despite repeated requests by the Respondent Nos. 1, 2 and 3 to the Claimant to furnish details with regard to the closure of the Books of Accounts on 31.03.2014, the Claimant has for reasons unknown to these Respondents been completely averse to a fair disclosure of the Books of Accounts to the Respondent Nos. 1, 2 and 3, which has in fact been the root cause for the destruction of the otherwise cordial relations between the parties to the said Articles of Association dated 01.04.2013.

19. Further, though under Clause 5, the Office of the Association was agreed to be situated at the Office of Pascoal Trindade situated at Ocean Park Residency at Dona Paula, the Office of the Association had been unilaterally and high handedly shifted by the Claimant to Emperor's Boulevard at Bambolim, and then to Kamala House at Miramar as a result of which the Respondent No. 1, 2, and 3 have even been denied of their legitimate right of access to the records of the Association.

20. Though under Clause 8, Pascoal Trindade, by way of his share of contribution to the capital of the Association was stated to have introduced the properties bearing Survey No. 93/3 and 93/4 of the Village of Bambolim as his contribution to the capital of the Association, which properties were stated to be valued at Rs. 3,09,50,000/- (Rupees Three Crores Nine Lakhs Fifty Thousand Only) for which the Capital Account of Pascoal Trindade was to be credited by an amount of Rs. 1,23,01,250/- (Rupees One Crore Twenty Three Lakhs One Thousand Two Hundred and Fifty Only) and the balance amount of Rs. 1,86,48,750/- (Rupees One Crore Eighty Six Lakhs Forty Eight Thousand Seven Hundred and Fifty Only) was to be credited to the Current Account of Pascoal Trindade, and the said properties on being introduced in the Association have been stated to have ceased to be the personal properties of Pascoal Trindade and become properties of the Association, despite repeated requests the Respondent Nos. 1, 2, and 3 have not been provided any details with regards to the balance standing in the Capital and Current Accounts of late Pascoal Trindade

and also his share of profit and losses. Further, till dated no amount has been paid to the Respondent Nos. 1, 2, and 3, which is otherwise required to be paid within the expiration of the period of six months from the date of death of late Pascoal Trindade.

21. It is stated and submitted that despite repeated requests to the Claimant, the details of the said account are being withheld by the Claimant without any disclosure and/or transparency in that regard to the Respondent Nos. 1, 2, and 3 who are the son, widow, and daughter in law respectively of late Pascoal Trindade.
22. Clause 9 of the Articles of Association dated 01-04-2013 records that the Claimant and the Respondent No. 4 has financed for acquisition/development of Schedule I and Schedule II Properties over the years to Pascoal Trindade and that their contribution was Rs. 71,00,000/- and Rs. 68,50,000/- respectively and that Pascoal Trindade would refund this amounts, whereupon the Claimant and the

Respondent No. 4 would bring in these amounts as their contribution to the capital of the Association and records the agreement that the balance capital contribution of the Claimant and the Respondent No. 4 in the sum of Rs. 53,01,250/- (Rupees Fifty Three Lakhs One Thousand Two Hundred and Fifty Only) and Rs. 10,47,500/- (Rupees Ten Lakhs Forty Seven Thousand Five Hundred Only) respectively would be made by them within 15 months from 01.04.2013 that being the date of execution of the said Articles of Association.

23. Under Clause 10, it had been expressly agreed upon by the parties that further funds required to incur expenses for the development, execution of projects or sale of the Said Properties would be contributed by the parties in the proportion of their respective share in the profit/loss as specified under Clause 14(a), or 14(b), or 14(c) or 14(d). It is however pertinent to point out that there was no Clause 14(d) contained under Clause 14 to the said Articles of Association dated 01.04.2013.

24. Under Clause 10, it had been expressly agreed that if any funds were required to incur any expenditure/cost or to make payment for removing encumbrance, claim, demand on the said properties by the Comunidade of Bambolim, in such event all funds required for the same would be brought in by the Claimant and Pascoal Trindade equally and that the Respondent No. 4 would not be required to bring in any funds for the same.
25. It is stated and submitted that the entitlement of the members of the Association and more specifically the rights were covenanted under Clause 11. Under Clause 12, it was agreed by the parties, that unless unanimously agreed otherwise, all withdrawals by the members was to be in proportion of their respective share in the profit/loss specified in Clause 15.
26. Further, under Clause 13, the Parties covenanted that each member would be jointly and severally liable for the liabilities of the Association, subject to the provisions of Clause 15, wherein it had been expressly covenanted by and

between the parties, that the profit/loss of the year would be determined as per the prevailing accounting standards, principles, after meeting all the expenses, out goings, depreciations, taxes etc., and that separate accounts would be maintained in respect of the development and sale of each of the Schedule I and 2A, 2B, and 2C Properties and that the profit arising there from would be determined each year and a separate profit and loss account, and balance sheet would be drawn.

27. It is stated and submitted that under Clause 15 it had been agreed upon that such profit arrived at in respect of each of the Schedule I and 2A, 2B, and 2C Properties would be shared in the ratio as specified and agreed upon under Clause 15 of the Articles of Association dated 01.04.2013.

28. Under Clause 14, the parties agreed that the property bearing Survey No. 93/4 of the Village of Bambolim, namely the Schedule II property be notionally divided into three parts admeasuring 14,500 sq. mtrs., 13,500 sq. mtrs., and 4,900

sq. mtrs. stated to be delineated in green, red, and blue colour boundary respectively and denominated as Schedule 2A, Schedule 2B, and Schedule 2C Property respectively.

29. It is stated and submitted that despite timely, repeated, polite and earnest request by the Respondent Nos. 1, 2, and 3 to the Claimant and the Respondent No. 4 with regard to the Profit and Loss Account in respect of the said Association, the Claimant as well as the Respondent No. 4 far from being cooperative and transparent in the working and/or dealings in respect of the said properties have been secretive and uncooperative to the Respondent Nos. 1, 2 and 3, as a result of which the Respondent Nos. 1, 2, and 3 have been virtually left groping in the dark as to the status of the affairs concerning the said Association of Persons, whereby despite being the legal heirs of late Pascoal Trindade, the Respondent Nos. 1, 2 and 3 have been virtually deprived of their entitlements of having a fair assessment of the business affairs of the Association and the properties, apart from there

being absolutely no compliance of Clause 28 and 29 of the Articles of Association dated 01.04.2013.

30. It is stated and submitted that Clause 20 specifically records the agreement between the parties that all decisions in regard to the affairs of the Association inter alia including making of investments, withdrawing of investments, starting of any business was to be taken by the unanimous decisions of the members in writing and in the form of the resolution duly signed by all the members and in keeping with the said understanding under Clause 21, the parties expressly agreed that no resolution would be valid unless the same was approved and passed by all the members unanimously and in keeping with the said agreement a register of resolutions was required to be kept by the Association with all such resolutions incorporated chronologically in such register. It is stated and submitted that the custody of the register of resolutions along with the other records, documents and statements is with the Claimant after having unilaterally and high handedly shifted the Office of the Association from the

Office of Pascoal Trindade situated at Ocean Park Residency at Dona Paula, to Emperor's Boulevard at Bambolim, and then to Kamala House at Miramar.

31. Under Clause 22, the parties expressly agreed that the Bank Account or Bank Accounts of the Association at any time after formation of the Association would be operated jointly by all the three parties to the Articles of Association and that any modification of this clause could be made by unanimous resolution in writing by all the members of the association.
32. Similarly, under Clause 23 any Sale Deed to be executed on behalf of the Association in favour of prospective purchasers of any property owned by the association was to be invariably signed and executed by all three parties to the Agreement and any modification of this clause could be made by unanimous resolution in writing by all the members of the Association.
33. As recorded in Clause 24, proper books of accounts were agreed to be kept as per the accounting principles for

recording entries of all particulars of money, good, effects, belonging to or owing to or by the Association or paid, received, sold or purchased in the course of the activity of the Association including all such other transactions, matters and things relating to the activities of the said association.

34. In fact, under Clause 24, the said Books of Accounts together with all letters, papers, or writings concerning or belonging to the Association except those required to be kept at the bankers are required to be kept at the office of the Association and each of the members shall at all times have free access to and right to inspect and make copy of the same.
35. To the dismay of the Respondent Nos. 1, 2 and 3 far from the entitlement of free access and right to inspect and make copies of the books of accounts, the Respondent Nos. 1, 2 and 3 have been denied and virtually deprived of the right of free access to inspection of the books of accounts despite repeated requests and polite reminders in that regard.

36. Clause 25, expressly records that no member acting alone without specific authorization of all the members in writing to act on behalf of the Association would at all times by the act/omission ever be considered to be doing acts on behalf of any other member or members, so as to bring into existence by implication or otherwise, the contract of agency between the members or incur any liability to the Association and accordingly, in keeping with the said Agreement under Clause 26 it has been expressly agreed that no member by the agreement recorded in the said Articles of Association dated 01.04.2013 is or shall become the agent of the Association or of the other members unless all the members are acting together.
37. Under Clause 28, the parties expressly provided and agreed that in the event of death of a member, his legal heirs would have the choice to become members of the Association and their becoming members would be automatic unless the legal heirs specifically in writing intimate the Association of

their decision not to become members within a period of two months of the demise of the member.

38. It is stated and submitted that accordingly, under Clause 28, the legal heirs on becoming members of the Association inherit the rights and liabilities of the deceased member and also the balance standing at the capital and current accounts of the deceased member and also the share of profit or losses to the share of the deceased member.

39. As a fact under Clause 29 it is provided that the legal heirs shall be entitled to the balance standing at the capital and current account as on such date which amount shall be paid without interest to the legal heirs within expiration of the period of six months from the date of death, retirement, removal, insolvency, liquidation, etc.

40. Clause 30 bars the members from alienating and/or transferring the right, title, interest or any part in the Association as a member.

41. Clause 35, contains the Arbitration Agreement arrived at between the parties that in the event of any dispute between the members of the Association or between the members and the legal heirs inter alia the matter be referred to arbitration.
42. It is stated and submitted that though the Claimant has sought to invoke the arbitration clause contained in Clause 35 of the said Articles of Association dated 01.04.2013, on a claim of disputes having surfaced between the parties, the Claimant has never acceded to the requests for a fair disclosure and/or transparency as regards the financial affairs of the Association, consequent upon which the cordial relations between the parties to the association have subsequent to the death of Pascoal Trindade on 17.01.2022, created a situation whereby the requirement of the corresponding trust has been lost on account of the denial on the part of the Claimant in disclosing the records and/or books of accounts to the Respondent Nos. 1, 2 and 3.

43. It is of pertinence to point out that as specifically agreed upon by and between the parties to the said Articles of Association dated 01.04.2013, Schedule 2A, 2B, and 2C were not incorporated in the said instrument and were to be incorporated as expressly so found recorded at page 15 of the said Articles of Association dated 01.04.2013.

43A. Recently, these Respondents have acquired records in the form of bank statements. The said statements reveal that the Claimant and Respondent No. 4 herein were refunded, returned and/or paid various amounts from the personal account of Late Pascoal Trindade. It is apparent from the said statements that the Claimant's entity, namely Pravar Trade Investment Pvt. Ltd., was paid an amount of Rs. 71,00,000/- on 03.05.2014, corresponding to the amount purportedly invested by the Claimant. The said statements further reveal that, apart from the aforesaid payment of Rs. 71,00,000/-, various amounts were remitted to Pravar Trade Investment Pvt. Ltd., aggregating to a total sum of Rs. 1,09,00,180/-. Similarly, an amount of Rs. 68,50,000/- was

remitted to the account of Respondent No. 4 on 26.04.2014, corresponding to the amount purportedly invested by Respondent No. 4 herein. The statements further reveal that, including the aforesaid payment of Rs. 68,50,000/-, various amounts were remitted to Respondent No. 4, aggregating to a total sum of Rs. 1,06,50,116/-. The remittance of the said amounts demonstrates that the entire purported advances and/or investments made by the Claimant and Respondent No. 4 herein were refunded to them and, consequently, the claims pertaining to entitlement over the subject property, partition and/or damages and losses raised in connection with the AOA cannot be sustained. The Claimant has not produced any material to demonstrate that the said amounts refunded / paid to the Claimant and/or Respondent No. 4 were reinvested and/or brought back into the AOA in any manner and/or they have made any other independent investments in the AOA and/or for the purpose of acquisition of the property. The contents of the balance sheet and the statement of income and profit-loss account relied by the Claimant are seriously disputed. It is obvious from the

reading of the balance sheet and the accounts produced by the Claimant that the same are self-serving documents created / concocted and/or engineered after the invocation notice dated 28.02.2024.

43B. The Respondents submit that the Claimants herein have intentionally suppressed these facts from this Hon'ble Tribunal to obtain orders from this Tribunal and frustrate the rights of the Respondents herein. Claimant has systemically, consistently and with malafide refused to submit the statement of accounts, audited statements and/or any of the financial records and/or statement qua any of the business. In view of the remittance referred to above, it is evident the intent of the Claimant in suppressing such vital facts from the Respondents and/or this Hon'ble Tribunal was to obtain orders and usurp rights in the properties vested onto these Respondents.

43C. The Claimant has also suppressed the fact that he is the authorized representative of M/s. Loonkar and has

represented the said company before the Court of the Civil Judge, Senior Division, at Panaji, in a suit filed by the Comunidade.

43D. Significantly, the Claimant has categorically admitted that the subject properties are owned by Late Pascoal Trindade and Respondent No. 2 much contrary to the Statements made by him in the Statement of Claim. The Affidavit in Evidence was filed before the Court as on 20.04.2022. Interestingly, the said Affidavit in Evidence dated 20.04.2022, which was drafted at the instance of the Claimant with obvious the assistance of the lawyer categorically records that the subject properties are owned and exclusively possessed by the Respondent Nos. 1, 2 and 3. In the entire Affidavit-in-Evidence, the Claimant herein has neither claimed to be a co-owner of the property nor made any reference to M/s. PVM and/or even to his purported investment in the subject property. Obviously, the Claimant in the habit of adopting inconsistent and incongruous stands as per the nature of proceedings he faces,

such conduct of the Claimant cannot be countenance in law and particularly disentitles him to any relief either in facts and circumstances of this case and/or in law. This conduct of the Claimant becomes relevant considering the scope and ambit of the Order dated 13.10.2022 passed by the Civil Judge Senior Division at Panaji whereby the said Court, obviously after hearing the Claimant as the representative of Loonkar Developers Pvt. Ltd., has given findings qua existence, entitlements of M/s. PVM. It is more so relevant to note that the Legal Notice dated 29.10.2022, purportedly issued by Loonkar Developers Pvt. Ltd. is clearly engineered by the Claimant considering he is the authorized representative of Loonkar Developers Pvt. Ltd.

43E. These Respondents state that none of the actions and/or omissions attributable to these Respondents has caused any real loss/damage to the Claimant and/or Respondent No. 4.

44. With regard to the contents of Para 6(a) and 6(b), the contents thereof are denied, and the Claimant put to strict proof thereof.
45. With regard to the contents of Para 6(c) it is stated and submitted that as a fact, the Memorandum of Understanding dated 06.06.2006 indicates that there was an agreement between M/s. Pravar Trade Invest Pvt. Ltd., with the Claimant inter alia as the director, wherein Mr. Pascoal Trindade was a director as well, and it was agreed to join together with M/s. Sumer Builders Private Limited inter alia with Mr. Ramesh Shah and Mr. Manekchand Loonkar, as directors to join together for development of properties in the name and style of M/s. Loonkar Developers Pvt. Ltd., with equal shareholding of 50:50 in the said M/s. Loonkar Developers Private Limited, on terms and conditions covenanted in the said MOU, which is produced at Annexure-B to the Statement of Claim.

46. It is pertinent to point out that the said Memorandum of Understanding expressly records the fact that M/s. Pravara Trade Invest Private Limited wherein inter alia the Claimant and late Pascoal Trindade were directors, had through its Director Pascoal Trindade executed with the owners sale deed in respect of the plots of land bearing Survey No. 93/2, and 93/3, and 93/4 of the Village of Bambolim and had finalized the purchase of land bearing Survey No. 105/1 and 105/2 within the limits of Village Panchayat of Curca, Bambolim, Telaulim and the said MOU contained an arbitration agreement at Clause 17 therein.
47. With regard to the contents of Para 6(d), 6(e), and 6(f), the same are denied and the Claimant is put to strict proof thereof. The so called Statement of Investment produced at Annexure-C to the Statement of Claim is denied for inability to verify the truth and veracity thereof and the Claimant is put to strict proof thereof.

48. With regard to the contents of Para 6(g), the contents thereof are true. It is stated and submitted that the Memorandum of Understanding dated 06.06.2006 came to be executed subsequent to the deeds of sale dated 25.04.2006 which were registered with the Office of the Sub-Registrar under no. 1238 at pages 369 to 387 of Book 1, Vol. 1634 dated 03.05.2006, under no. 1239 at pages 388 to 408 of Book 1, Vol. 1634 dated 03.05.2006 and under no. 1240 at pages 409 to 427 of Book 1 Vol. 1634 dated 06.05.2006 in respect of the properties bearing Survey No. 93/2, 93/3, and 93/4 of Village of Bambolim. It is stated and submitted that the copies of the Deed of Sale dated 25.04.2006 in respect of the properties bearing Survey No. 93/3 and 93/4 though referred at para 6(g) as being annexed and marked as Annexure-D Colly, only the Deed of Sale dated 25.04.2006 in respect of the property bearing Survey No. 93/2 of the Village of Bambolim has been produced by the Claimant at Annexure-D Colly to the Statement of Claim.

49. With regard to the contents of Para 6(h), the contents thereof in the manner they are set out are denied being false, and the Claimant is put to strict proof thereof. It is denied that the Claimant with the help and effort of the consortium and other partners obtained the clearances produced at Annexure-E Colly.

50. It is stated and submitted that the Conversion Sanad, Technical Clearance Orders, the Construction License and other clearances have been issued by the respective authority to and in the name of Pascoal Trindade and consequently the contents of Para 6(h) are denied.

51. With regard to the contents of Para 6(i) and 6(j), the contents thereof are denied as being false, and the Claimant is put to strict proof thereof.

51A. Deed of Sale dated 14.07.2014, executed subsequent to the purported Articles of Association, a portion of the larger property was conveyed by Respondent No. 2 and Late Pascoal Trindade in favour of Loonkar. Significantly, the

said Deed of Sale contains no reference whatsoever either qua purported efforts made by the Claimant and Respondent No: 4 in developing property and/or acquiring the same and/or the existence of the Articles of Association or to any alleged rights, title, interest, entitlement, or claim of the Claimants and/or Respondent No. 4 in the property conveyed thereunder. It is pertinent to note that Respondent No. 4 and his then advocate, Mr. Rao, were witnesses to the said Deed of Sale. The execution of the said Deed and the contents thereof were therefore well within the knowledge of the Claimants and Respondent No. 4. Despite such knowledge, neither the Claimants nor Respondent No. 4 asserted any proprietary interest in the property conveyed, nor did they insist upon being joined as confirming parties, consenting parties, co-vendors, or otherwise participating in the transaction.

51B. The aforesaid omission is demonstrative of the fact that the parties Claimant and/or the Respondent No: 4 herein no real role in developing the said properties and/or its acquisition.

Consequently, any claim for partition, compensation, declaration of entitlement, or any other relief premised upon an assertion of title or proprietary interest in the subject properties is devoid of merit and liable to be dismissed.

52. With regard to the contents of Para 6(k), the contents thereof are denied.
53. With regard to the contents of para 6(l) and 6(m) it is denied that the bare perusal of the Articles of Association dated 01.04.2013 clearly brings out that the Claimant and the Respondent No. 4 have advanced sums stated in para 6(l) to Pascoal Trindade as alleged. It is stated and submitted that for want of disclosure of the records, statements, data and documents in support of the said assertive claim by the Claimant, the Respondent Nos. 1, 2, and 3 deny the contents thereof. Thus the same are denied for inability to verify the truth and veracity thereof and the Claimant is put to strict proof thereof. With regard to the contents of para 6(m) it is denied that the said properties having been introduced into

the Association cease to remain properties of Mr. Pascoal Trindade and were now properties of the Association as alleged, and that Pascoal Trindade would hold the same for and behalf of the Association.

53A. The terms of the Articles of Association themselves make it abundantly clear that the same did not constitute a juristic entity capable of independently holding or acquiring rights, title, or interest in the immovable properties forming the subject matter of the present dispute. The case of the Claimants is that the subject properties ceased to vest in Late Pascoal Trindade and thereafter became vested in the Articles of Association and/or the arrangement contemplated thereunder. The purported divesting of title from Late Pascoal Trindade and the corresponding vesting of title in favour of the Articles of Association, or any body purportedly created thereunder, is unsupported by any registered conveyance, deed of transfer, instrument of assignment, or other legally recognized mode of transfer of immovable property. Consequently, the Articles of

Association could not and did not operate to transfer, convey, assign, extinguish, or otherwise alter the title vested in Late Pascoal Trindade and/or Respondent No. 2.

53B. It is an established position that the Articles of Association relied upon by the Claimants neither constituted a company incorporated under law nor a partnership firm recognized by any statutory framework. The arrangement contemplated thereunder did not possess any independent juristic personality or legal character capable of holding, acquiring, or enforcing proprietary rights in its own name.

53C. In the absence of any recognized legal status or juristic character, the Articles of Association could not, by themselves, become the repository of rights, title, or interest in the subject properties. Consequently, any claim found upon the premise that proprietary rights including rights qua compensation, damages or loss, or that such rights are presently sought to be enforced solely are legally untenable and unsustainable.

54. With regard to the contents of Para 6(n), the contents thereof are denied as being false, and the Claimant is put to strict proof thereof. It is stated and submitted that the Joint Venture Agreement dated 25.04.2014 at Annexure-G contains the terms and conditions of the Joint Venture in respect of the property bearing Survey No. 93/3 of the Village of Bambolim and in fact has an arbitration agreement, whereby in the event of disputes the parties contemplated the procedure for redressal for the same.

54A. The Respondents state that the Joint Venture Agreement dated 25.04.2014 is of no legal consequence insofar as the claims and reliefs sought against Respondent No. 2 are concerned. Undeniably, Respondent No. 2 was not signatory to the said Joint Venture Agreement. The said agreement appears to have been executed by Late Pascoal Trindade purportedly acting under the authority of a Power of Attorney. However, the said Power of Attorney has neither been annexed to the Joint Venture Agreement nor placed on

record in the present proceedings. In absence of such production of power of attorney on record the said Joint Venture Agreement cannot be relied upon and/or shall not have any legal effect qua entitlements of the Respondents. In fact, no record has been produced evidencing the execution and/or registration of such Power of Attorney as contemplated therein.

54B. Without prejudice to the aforesaid, the present arbitral proceedings are not founded upon or arising out of the Joint Venture Agreement dated 25.04.2014. Consequently, the question of Respondent No. 2 seeking any independent declaration or relief in relation to the validity thereof does not arise in the present proceedings. Even otherwise, the JVA in no manner does not and cannot operate to divest, extinguish, transfer, encumber, or otherwise affect the proprietary rights, title, interest, entitlement, and moiety rights of Respondent No. 2 in the subject property.

55. With regard to the contents of Para 6(o) and (p), the contents thereof are denied and the Claimant is put to strict proof thereof.
56. With regard to the contents of Para 6 (q), the contents thereof in the manner they are set out are denied. It is stated and submitted that as a fact the injunction order dated 13.03.2020 passed by the Civil Judge Senior Division is an order which came to be passed on a contest in the said Civil Suit by late Pascoal Trindade and Albertina Trindade, being ably represented being ably by Adv. Raunaq Rao who has defended the said Application for Temporary Injunction, whereas the rest of the Defendant Nos. 3-9 proceeded ex-parte.
57. With regard to the contents of Para 6(r) it is specifically denied that in accordance with the Agreement dated 25.04.2014, it was the responsibility of late Pascoal Trindade and the Claimant to resolve any interferences dispute by the villagers in respect of the said properties at

their own cost as alleged. It is in fact pertinent to point out that the Agreement dated 25.04.2014, is a joint venture agreement, which is an independent agreement having been entered into between Pascoal Trindade and his wife, the Claimant, the Respondent No. 4 herein, and Kuval Projects.

58. The said Agreement dated 25.04.2014 was an agreement entered into by the parties with regards to the property bearing Survey No. 93/3 of the Village of Bambolim, admeasuring 26,825 sq. mtrs., wherein the parties to the said Joint Venture Agreement agreed to be independently governed with regard to disputes under the said Joint Venture Agreement in terms of Clause 27 which contained the Arbitration Agreement between the parties to the same, and consequently the claim that the said Agreement dated 25.04.2014 was in respect of the said properties implying thereby to be in respect of the property bearing Survey No. 93/3 and 93/4 of the Village of Bambolim, apart from being false is with respect misplaced. These Respondents crave leave of this Hon'ble Tribunal to refer and rely on the

contents of the said Agreement dated 25.04.2014 for its true scope and meaning.

59. With regard to the contents of Para 6(s) the contents thereof are denied and the Claimant is put to strict proof thereof.
60. With regard to the contents of Para 6(t) and 6(u), the contents thereof are denied and the Claimant is put to strict proof thereof. It is denied that upon and after great persuasion the Claimant, the late Pascoal Trindade agreed to settle the disputes raised by the Comunidade of Bambolim amicably and requested the Claimant to negotiate the said Settlement Terms with the Comunidade of Bambolim.
61. It is in fact surprising in as much as from the averments in para 6(t) it is unascertainable as to when, how and by whom, that the Claimant was requested to negotiate the settlement terms with the Comunidade of Bambolim which were finally and mutually agreed by the parties concerned. It is stated and submitted that to the knowledge of the Respondent No. 1, 2, and 3 late Pascoal Trindade negotiated

the settlement terms with the Comunidade of Bambolim, and therefore late Pascoal Trindade prior to his demise forwarded the draft of approved Consent Terms to the Claimant. It is stated and submitted that however due to the intervening Covid Pandemic and the demise of Mr. Pascoal Trindade who was personally conversant with the matter concerning the disputes raised by the Comunidade of Bambolim, the same could not be pursued by the Respondent Nos. 1, 2, and 3.

62. As a fact the persistent requests by the Respondent No. 1, being the widow and moiety holder of late Pascoal Trindade, and the Respondent Nos. 2 and 3 being his Legal Representatives were not adhered to and in view of the said non-disclosure of vital and essential data which were required by the Respondent Nos. 1, 2, and 3 to ascertain the status of the business affairs concerning the Articles of Association dated 01.04.2013 remained to be pursued for non-disclosure of the said status of the assets, businesses, and accounts of the business ventures, not only with regard

to the affairs concerning the Articles of Association dated 01.04.2013 but also the access to various other commercial entities for various projects undertaken by the Claimant with late Pascoal Trindade on mutual understanding were concealed thereby leaving the Respondent Nos. 1, 2 and 3 unaware, as a result of which the Respondent Nos. 1, 2, and 3 have been unable to ascertain, understand and/or determine the course of action to be followed up in that regard.

63. With regard to the contents of Para 6(v), the contents thereof are denied and the Claimant is put to strict proof thereof. With regard to the contents of para 6(v), it is stated and submitted that the Claimant and the Respondent No. 4 approached and solicited the cooperation of the Respondent Nos. 1, 2, and 3, but however far from adhering to the corresponding request by the Respondent No. 1, 2, and 3 for a fair disclosure and transparency of the Books of Account of the Association, Details of Bank Accounts and the details of operation of the bank accounts, the Profit and Loss

Account, and the computation of the share of the members in the assets of the Association, was neither disclosed nor provided to the Respondent Nos. 1, 2, and 3 despite the fact that the Respondent Nos. 1, 2, and 3 have neither intimated nor communicated the Claimant and the Respondent No. 4 of any decision not to become members of the same upon the demise of late Pascoal Trindade on 17.01.2022. It is stated and submitted that though Annexure-I Colly at para 6(v) makes reference to Notices dated 22.02.2023 and 29.10.2022 being annexed by the Claimant the Notice dated 22.02.2023 is not found annexed and/or produced by the Claimant.

64. It is stated and submitted that as fact, consequent upon the Respondent Nos. 1, 2, and 3 becoming members of the Association in terms of Clause 28, the Respondent Nos. 1, 2, and 3 have inherited all the rights and liabilities of late Pascoal Trindade and also the balance standing in the Capital and Current Accounts as well as the Share of Profits/Losses to be shared by late Pascoal Trindade.

65. It is stated and submitted that far from complying with the polite requests of the Respondent Nos. 1, 2, and 3 of disclosure of the balance standing in the Capital and Current Accounts as well as the Share of Profits/Losses to be shared by late Pascoal Trindade and the other details of transactions transacted by the Claimant and/or the Respondent No. 4 for and on behalf of the Articles of Association, even specifically subsequent to the death of late Pascoal Trindade on 17.01.2022, the Claimant with respect adopted a very defiant attitude and has denied and thereby deprived the Respondent Nos. 1, 2, and 3 of even an opportunity of fair assessment of the status and affairs of the business of the Association of Persons wherein late Pascoal Trindade was the active member being involved in the day to day affairs having put in his toil, and hard work for the smooth conduct of the business of the Association.
66. With regard to the contents of Para 6(w), the contents thereof are denied. It is stated and submitted that despite having

denied and deprived the Respondent Nos. 1, 2, and 3 of their legitimate right to ascertain and determine the inheritance in the rights and liabilities of late Pascoal Trindade and the balance standing in the Capital and Current Accounts, and in the Share of Profits/Losses the Claimant with respect has the audacity to claim that the Respondent Nos. 1, 2, and 3 without assigning any reasons whatsoever, despite being the legal heirs and representatives of Late Pascoal Trindade, in inspite of repeated request and pleas by all the concerned parties, they have neither responded nor come forward to cooperate to either attend or pursue the proceedings pending before the Hon'ble Court nor to sign documents required by the intending purchaser.

67. With regards to contents of Para 6(x) and 6(y), the contents thereof are substantially true.

68. With regards to contents of Para 6(z), the contents thereof in the manner they are set out are denied. It is stated and submitted that in fact the area of 5000 sq. mtrs. by Loonkar

Developers Private Limited for allotment to the Comunidade of Bambolim, towards the settlement in Special Civil Suit No. 52/2013/A was in fact an area earmarked by Loonkar Developers Private Limited, wherein M/s. Pravar Trade Invest Private Limited, a Private Limited Company with the Claimant and late Mr. Pascoal Trindade as the Directors inter alia agreed to join together with M/s. Sumer Builders Private Limited, wherein Mr. Ramesh Shah and Mr. Manekchand Loonkar were Directors inter alia and agreed to join together for development of properties in Goa in the name and style of M/s. Loonkar Developers Private Limited, wherein the said M/s. Pravar Trade Invest Private Limited and M/s. Sumer Builders have had equal share holding in the ratio of 50-50 in the said M/s. Loonkar Developers Private Limited.

69. It is stated and submitted that as informed to the Respondent No. 1, by the Claimant, in the course of approaching the Respondent Nos. 1, 2, and 3 and soliciting the cooperation of Respondent Nos. 1, 2, and 3 to defend the said Special

Civil Suit No. 52/2013/A, the Claimant informed the Respondent No. 1 that towards adjustment of the said area of 5000 sq. mtrs. earmarked for allotment to the Comunidade of Bambolim, the property bearing Survey No. 105/2 of the Village of Bambolim having an area of 4875 sq. mtrs. would be transferred from M/s. Pravar Trade Invest Private Limited (wherein the Respondent No. 1 is a Director), to Loonkar Developers Private Limited in lieu of allotment of 5000 sq. mtrs. to the Comunidade of Bambolim.

70. With regard to the contents of Para 6(aa), the contents thereof are denied being false and incapable of a logical interpretation. It is stated and submitted that the letter dated 27.11.2020 is a letter addressed by the Comunidade of Bambolim, through its advocate to late Pascoal Trindade wherein in response to the letter dated 20-11-2020 addressed by Mr. Pascoal Trindade and the Respondent No. 2 herein, to the Managing Committee of the Comunidade of Bambolim with a settlement proposal in respect of the

properties under Survey No. 93/2, 93/3, and 93/4 of the Village of Bambolim, the Comunidade of Bambolim sought clarification for the purpose of putting up the proposal before the Managing Committee of the Comunidade of Bambolim.

71. With regard to the contents of Para 6(bb), the contents thereof are substantially true. It is stated and submitted that the response thereto dated 02.12.2020 was addressed by Advocate Raunaq Rao in response to the said letter dated 27.11.2020, wherein on instructions from Mr. Pascoal Trindade, a request was made to ensure that all discussions on the subject of settlement be minuted by the Escrivao in order to rule out any misunderstandings or misinterpretations given the chequered history of the litigation and the necessary clarifications, as sought for by the letter dated 27.11.2020, were accordingly provided to the Comunidade of Bambolim vide the letter dated 02.12.2020.

72. With regard to the contents of Para 6(cc), the contents thereof in the manner in which they are set out are denied. It is stated and submitted that the Claimant on one hand seeks to assert that there is a binding concluded agreement which would bind the Respondent Nos. 1, 2, and 3 as regards the sale of the property bearing Survey No. 93/4 to intending purchasers as identified by Late Pascoal Trindade to generate the funding required to purportedly meet the commitments made vide the Consent Terms.

73. It is stated and submitted that the Respondent Nos. 1, 2 and 3 have not been provided with any details on the status of the accounts of the Articles of Association and despite earnest requests to the Claimant the same has virtually been denied to the Respondent Nos. 1, 2, and 3 having been conveniently put on deaf ears and consequently the Respondent Nos. 1, 2 and 3 despite being members of the Association having inherited the rights and liabilities of Late Pascoal Trindade have absolutely no knowledge or information of the balance standing in the Capital and

Current Accounts of Late Pascoal Trindade and/or the Share of Profits and Losses and the contention by the Claimant of a binding concluded agreement which would bind the Respondent Nos. 1, 2 and 3 is in fact an action of virtually exercising undue influence, by exerting pressure on the Respondent Nos. 1, 2 and 3 without even affording a fair opportunity of ascertaining the status of the rights and/or the entitlements inherited by the Respondent Nos. 1, 2 and 3 subsequent to the death of Late Pascoal Trindade on 17.01.2022.

74. It is stated and submitted that the Respondent Nos. 1, 2, and 3 are ready and willing and in fact interested in sorting out the disputes which have surfaced between the parties subsequent to the death of Late Pascoal Trindade on 17.01.2022 and it is in this pursuit that the Respondent Nos. 1, 2, and 3 in fact even proposed a global settlement in respect of all the properties which were the subject matter of the various commercial entities or various projects undertaken by the Claimant and Late Pascoal Trindade on

mutual understanding and as is found recorded in the minutes of this Hon'ble Tribunal dated 14.09.2024, but however to the dismay of the Respondent Nos. 1, 2, and 3, the conduct of the Claimant has been one far from the expectation of the Respondent Nos. 1, 2 and 3 of being fair to the legal representatives of Late Pascoal Trindade, who has been a close business associate of the Claimant not only in respect of the Articles of Association dated 01.04.2013 but several commercial entities which were undertaken by the Claimant and Late Pascoal Trindade for various projects undertaken by them in the state of Goa on mutual understanding, whereby since the Claimant was based out of Goa and the various projects and commercial entities comprised of properties in the state of Goa, late Pascoal Trindade was the business partner who was involved in the day to day management of the affairs of the Articles of Association having taken the burden, risks, and pressure of the business having put in his toil and hard work in the daily operations of the partnership in consultation and ratification by the Claimant.

75. With regards to contents of Para 6(ee), the contents thereof are substantially true.
76. With regard to the contents of Para 7, the contents thereof are false and hence denied.
77. The so called factual matrix claimed to have been enumerated is with respect distorted and consequently cannot bring out that the Respondent Nos. 1, 2 and 3 have failed and neglected to come forth and render cooperation for the closure of proceedings and/or execute necessary documentation with respect to the same as alleged. It is denied that the same has allegedly resulted in the delay of the project as alleged and has jeopardized the investment made by the Claimant in the purchase and development of the said property as alleged.
78. With regard to the contents of Para 8, the contents thereof are denied. It is stated and submitted that the Respondent

No. 1 has deposed in the said proceedings for representing the interests of Late Pascoal Trindade in the said suit.

79. With regard to the contents of Para 9 and 10, the contents thereof are false and hence denied. It is denied that owing to the alleged default on the part of the Respondent Nos. 1, 2 and 3 there has occasioned huge loss of Rs. 20,00,00,000/- to PVM Associates and further losses to M/s. Kuval Projects as alleged and are bound to initiate proceedings against for the recovery of losses occasioned to them as alleged. The contents of Para 9, with respect are palpably absurd and preposterous for a fact that all the said proceedings, are proceedings which were either instituted by Late Pascoal Trindade during his lifetime or proceedings which being instituted inter alia against Late Pascoal Trindade wherein Pascoal Trindade was ably represented by his Advocate Mr. Raunaq Rao, who in fact had graciously continued to represent the heirs/legal representatives of Pascoal Trindade in all proceedings until the Respondent No. 1 was abruptly

handed over No-Objection Certificates on 20.01.2023 for reasons unknown to the Respondent Nos. 1, 2 and 3.

80. With regard to the contents of Para 11, the contents thereof are denied. It is denied that the Respondent Nos. 1, 2 and 3 are solely responsible for the alleged losses claimed to have been incurred by the Claimant and the Respondent No. 4 for allegedly not defending the interests of PVM Associates.
81. With regards to contents of Para 12, it is denied that the Claimant is entitled to an order directing the Respondent Nos. 1, 2, 3 to pay to the Claimant the sum of Rs. 20,00,00,000/- towards losses allegedly incurred by the Claimant.
82. With regard to the contents of Para 13, it is denied that the Claimant is entitled to an order of this Hon'ble Tribunal directing the appointment of a valuer as decided by this Hon'ble Tribunal to determine the value of the said property and assess the losses incurred by the Claimant.

83. With regard to the contents of Para 14, it is denied that the Claimant is entitled to an order of this Hon'ble Tribunal directing the appointment of a Court Commissioner to partition the property by metes and bounds in terms of the agreed ratio found in the Articles of Association and thereafter deduct the losses incurred by the Claimant from the Capital Account of the Respondent Nos. 1, 2 and 3 and reduce the same accordingly and also adjusting the profit/loss to the Claimant commensurately.

83A. In essence, the Claimants seeks a declaration and recognition of proprietary rights in the subject properties de hors the registered title documents and without any legally valid instrument evidencing the transfer or vesting of such rights in their favour. The reliefs sought by the Claimants necessarily require an adjudication upon questions of title and ownership contrary to and inconsistent with the registered instruments governing the subject properties, which have remained operative for decades. Consequently, in the absence of any legally recognized or crystallized

rights in favour of the Claimants, and particularly in the background of their attempt to assert and enforce alleged rights of ownership, vesting, title, and entitlement contrary to and in derogation of the registered instruments governing the subject properties, the claims raised in the present proceedings are wholly misconceived and untenable and, as such, the claims raised by them are liable to be rejected.

83B. The averments in the Statement of Claim make it evident that the present arbitral proceedings were initiated owing to the circumstances in relation to M/s. Kuval Projects Private Ltd., Pravar Trade Investment Private Ltd., M/s. Sumer Builders Private Ltd., and the pending proceedings against the Comunidade of Bambolim, as the determination of the claims shall include a decision on the rights, title, and interest of the parties over the subject properties. Apart from the parties mentioned above, the said Award (if any), would have the effect of eviscerating the rights and claims of other third parties, including financial institutions (if any), with retrospective effect, thereby virtually nullifying, partially or

totally, all claims and rights created on the basis of the said Deed of Sale. The consequences of a declaration of such a nature in an intra-party arbitration have the potential to assume drastic proportions and permit the misuse of an Award of an Arbitrator in a given case for collateral purposes, and would constitute a complete violation of the fundamental policy of Indian law on arbitration.

84. At the cost of reiteration it is stated and submitted that the Respondent Nos. 1, 2 and 3 have been deliberately kept in the dark without even a fair disclosure and transparency of the Books of Account of the Association, Details of Bank Accounts and the details of operation of the bank accounts, the Profit and Loss Account, and the computation of the share of the members in the assets of the Association, which has neither disclosed nor provided to the Respondent Nos. 1, 2 and 3, in fact in violation and breach of Clause 28 and 29 of the Articles of Association dated 01.04.2013. It is stated and submitted that in fact the Respondent Nos. 1, 2 and 3 are entitled for an order directing the Claimant to

forthwith furnish to the Respondent Nos. 1, 2 and 3 the Books of Account of the Association, Details of Bank Accounts and the details of operation of the bank accounts, the Profit and Loss Account, and the computation of the share of the members in the assets of the Association and comply the requirements of Clause 28 and 29 of the Articles of Association dated 01.04.2013.

85. With regard to the contents of Para 15, the contents thereof are denied. It is denied that the Claimant is entitled to an order directing the Respondent Nos. 1, 2 and 3 to pay to the Claimant the sum of Rs. 1,00,00,00,000/- towards alleged damages, loss of opportunity to do business, loss of reputation, loss of mental peace and harassment, and towards future losses to be incurred by the Claimants. It is stated and submitted that the so called computation of damages and alleged losses in the sum of Rs. 1,00,00,00,000/- apart from being palpably absurd is bereft of any pleadings and/or substantiation. As a fact, the said pleadings apart from being most casual and cavalier are with

respect unnecessary, scandalous, frivolous, and vexatious and an absolute abuse of the process of law.

86. With regard to contents of Para 16, it is denied that the Claimant is entitled to an order pending the hearing and final disposal of the present proceedings, directing the Respondent Nos. 1, 2 and 3 to deposit a sum of Rs. 50,00,00,000/- as tentative value of the share of the Claimant. It is stated and submitted that the said Claim apart from being whimsical is bereft of any basis and is nothing short of an endeavour to browbeat the Respondent Nos. 1, 2 and 3 after having breached compliance of Clause 28 and 29 of the Articles of Association dated 01.04.2013.

87. With regard to the contents of Para 17, it is denied that pending the hearing and final disposal of the present Claim the Claimant is entitled to an order appointing the Claimant as Receiver in respect of the said properties and removing the said properties from the custody of the Respondent No. 1, 2 and 3 and committing the same to the custody and

management of the Claimant, and conferment upon the Claimant all powers as to bringing, defending, and settlement of suits and for the realization, management, protection, preservation and improvement of the said properties and execution of documents as the owner himself has as alleged.

88. With regard to the contents of Para 18, it is denied that the Claimant is entitled to a relief pending the hearing and final disposal of the present Claim directing the Respondent Nos. 1, 2 and 3 to deposit an amount of Rs. 20,00,00,000/- or such further amounts as directed by this Hon'ble Tribunal or to file an affidavit of their movable and immovable assets before this Hon'ble Tribunal which can be attached to secure the alleged claim of the Claimant in the present proceedings.
89. With regard to the contents of para 19, it is denied that pending the hearing and final disposal of the present Claim, the Claimant is entitled to an Order attaching the said

properties on such terms and conditions as this Hon'ble Tribunal deems fit and proper as alleged.

90. With regard to the contents of para 20, it is denied that the present Claim is within limitation as alleged.

91. With regard to the contents of para 22, the contents thereof are denied and the Preliminary Objections urged in the present Statement of Defence are reiterated.

92. With regard to the contents of para 23, it is denied that the Claimant is entitled to any relief in the present arbitration proceedings and this Hon'ble Tribunal accordingly be pleased to dismiss the same with exemplary costs.

Place: Panaji, Goa.

Date: 07.03.2025

Respondent Nos. 1, 2 and 3

Adv. for Respondents

VERIFICATION

I, Riva Anthony Trindade, Son of Late Pascoal Trindade, 52 years of age, Indian National, Businessman, resident of House No. 21/23/A, P.O NIO, Dona Paula, Tiswadi-Ilhas Goa the Respondent No. 1 herein do hereby on solemn affirmation beg to verify that what has been stated by me at paras 5(Part), 6(Part), 7(Part), 8, 9, 10, 11, 12, 13, 14, 15, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 45, 46, 48, 50(Part), 53(Part), 54, 56(Part), 57(Part), 58, 60(Part), 61, 62, 63(Part), 64, 65, 66(Part), 67, 68(Part), 69, 70(Part), 71, 72, 73, 74, 75, 77, 78(Part), 79(Part), and 80(Part) is based on facts true to my own knowledge and/or based on the records available with me **and at paragraph nos. 6Apt, 6B, 6Cpt, 6Dpt, 17Apt, 43Apt, 43Bpt, 43Cpt, 43Dpt, 43Ept, 51A, 51Bpt, 53Apt, 53Bpt, 53Cpt, 54Apt, 54Bpt, 83Apt and 83Bpt of the amendment is true and correct to my personal knowledge and belief and/or based on information derived from the records and/or inferences** and what has been stated by me at paras I(a, b, c, d, and e), 2, 3, 4, 5(Part), 6(Part), 7(Part), 16, 44, 47, 49, 50(Part), 51, 52, 53(Part), 55, 56(Part), 57(Part), 59, 60(Part), 63(Part), 64, 66(Part), 68(Part), 70(Part), 76,

78(Part), 79(Part), 80(Part), 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, and 91 are in the nature of inferences of fact and/or legal submissions based on legal advice which I believe to be true and at paragraph nos. 6Apt, 6Cpt, 6Dpt, 17Apt, 43Apt, 43Bpt, 43Cpt, 43Dpt, 43Ept, 51Bpt, 53Apt, 53Bpt, 53Cpt, 54Apt, 54Bpt, 83Apt and 83Bpt of the amendment is in the nature of legal submissions which I believe to be true and correct.

Solemnly verified at Panaji,

On this 7th day of March, 2025.

DEPONENT

**BEFORE THE HON'BLE SOLE ARBITRATOR MR. NITIN
N.N. SARDESSAI AT PANAJI GOA**

IN THE MATTER OF ARBITRATION BETWEEN:

MR. VIKRAM SHAH ...Claimant

V/s.

MR. RIVA TRINDADE & 3 Ors. ...Respondents

A F F I D A V I T

I, Riva Anthony Trindade, Son of Late Pascoal Trindade, 52 years of age, Indian National, Businessman, resident of House No. 21/23/A, P.O NIO, Dona Paula, Tiswadi-Ilhas Goa the Respondent No. 1 herein do hereby on solemn affirmation beg to state and submit as under:

1. I say that I am the Respondent No. 1 in the present proceedings and I am conversant with the facts of the present case.

2. I say that I have filed the accompanying Statement of Defence and I crave leave to refer and rely on the contents of the same as if the same are set out herein verbatim for the purpose of the present affidavit.

3. I say that the annexures annexed by me and enlisted in the List of Documents filed with the Statement of Defence are the true copies of the Original.

4. I say that what has been stated by me at 5(Part), 6(Part), 7(Part), 8, 9, 10, 11, 12, 13, 14, 15, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 45, 46, 48, 50(Part), 53(Part), 54, 56(Part), 57(Part), 58, 60(Part), 61, 62, 63(Part), 64, 65, 66(Part), 67, 68(Part), 69, 70(Part), 71, 72, 73, 74, 75, 77, 78(Part), 79(Part), and 80(Part) is based on facts true to my own knowledge and/or based on the records available with me and at paragraph nos. 6Apt, 6B, 6Cpt, 6Dpt, 17Apt, 43Apt, 43Bpt, 43Cpt, 43Dpt, 43Ept, 51A, 51Bpt, 53Apt, 53Bpt, 53Cpt, 54Apt, 54Bpt, 83Apt and 83Bpt of the amendment is true and correct to my personal knowledge and belief and/or based on information derived from the records and/or inferences and been stated by me at paras 1(a, b, c, d, and e), 2, 3, 4, 5(Part), 6(Part), 7(Part), 16, 44, 47, 49, 50(Part), 51,

52, 53(Part), 55, 56(Part), 57(Part), 59, 60(Part), 63(Part), 64, 66(Part), 68(Part), 70(Part), 76, 78(Part), 79(Part), 80(Part), 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, and 91 are in the nature of inferences of fact and/or legal submissions based on legal advice which I believe to be true and at paragraph nos. 6Apt, 6Cpt, 6Dpt, 17Apt, 43Apt, 43Bpt, 43Cpt, 43Dpt, 43Ept, 51Bpt, 53Apt, 53Bpt, 53Cpt, 54Apt, 54Bpt, 83Apt and 83Bpt of the amendment is in the nature of legal submissions which I believe to be true and correct.

Solemnly verified at Panaji,

On this 7th day of March, 2025.

DEPONENT

BEFORE THE HON'BLE SOLE ARBITRATOR MR. NITIN N. N.
SARDESSAI AT PANAJI GOA

IN THE MATTER OF ARBITRATION BETWEEN:

Mr. Vikram Shah

...CLAIMANT

VS.

Mr. Riva Trindade and 3 Ors

....RESPONDENTS

LIST OF DOCUMENTS

<u>Sr. No</u>	<u>Particulars</u>	<u>Remark</u>
1.	Letter dated 18-03-2023.	Photocopy
2.	Letter dated 30-03-2023	Photocopy
3.	<u>L</u> etter dated 12-04-2023	Photocopy
4.	Letter dated 04-07-2023.	Photocopy
5.	Letter dated 14-07-2023.	Photocopy

6.	Articles of Association dated 01-04-2013 produced at Annexure -A in the said Application Appointment of Arbitrator No. 13/2024 filed in the High Court of Bombay at Goa.	Photocopy
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PANAJI-GOA

07-03- 2025


ADVOCATE FOR RESPONDENT

From,
Mr. Riva Trindade,
Dona Paula,
Tiswadi,
Goa - 403004

To,
Mr. Vikram Shah,
28 Capri 9
Manav Mandir Road
Mumbai 400006

Subject: Request to furnish the Copies of Incorporation of Company documents, Sale deeds and Financial Documents

I, Mr. Riva Trindade being the legal heir of Late Mr. Pascoal Trindade, who is the stakeholder in various companies and AOP's in the capacity as director and partner and also has vested interest in joint venture agreements signed with various parties, the list of various companies and AOP's, are mentioned herein below :

- a) Paramount Buildwell Construction Pvt Ltd. (Ocean Park Project)
- b) Paramount Buildwell Construction Pvt Ltd (Emperor's Boulevard Project)
- c) Pravara Trade Invest Pvt Ltd.
- d) Pastina Holiday Home Pvt Ltd.
- e) Shivam Holiday Home

In order to understand the financial status and other documentations of various entities as listed above and as discussed with you on 28.02.2023 at Bambolim office and it was finalized that you shall provide the copies of necessary documents, so that we both could finish the settlement terms.

- Balance Sheets and Profit and Loss account audited up to date of above entities.
- All Bank Statements from the date of incorporation of above entities till date.

In view of above, I request you to provide me with the copies of following documents within a period of 15 days from the date of this letter.

With Warm Regards,


Riva Trindade

18th March 2023

By Hand Delivery / RECD A-P

From ;
Vikram Shah
Capri, 9, Manav mandir Road,
Malbar Hill, Mumbai 400006
Date : 30/03/2023

To
Mr. Riva Trindade
Palbrika Mansion, Near Rosary School,
Dona Paula, P.O. NIL, Goa 403004

Sub: Response to your communication dated 18-03-2023.

Dear Riva,

Although much delayed, I welcome your unaddressed communication received by office at Bambolim, Goa by hand delivery through your staff.

Before specifically replying to your communication, it is imperative to place on record viz a viz efforts by, besides me, Mr. Rami Daryanani, Mr. Kumar Vidhani, Mr. Nazreth Soares, Mr. Hemkant Bhangui to persuade you to co-operate and conclude the unfinished business left by your father in respect of several joint commercial ventures have remained non conclusive.

- 1) Please note that in the meeting dated 28/02/2023, I had clearly stated to appoint two mediators, one by me and one by you with clear mandate by both of us to accept the "award" given by them and conclude the matters in time bound period.

However, in response I have received the subject communication requesting for various documents.

- 2) Now specifically responding to your communication dated 18/03/2023 please note the following -

- i) Paramount Buildwell Construction Pvt. Ltd. is only one company and not two as you have mentioned.
- ii) You have forgotten to mention or have deliberately not mentioned the name of the AOP viz PVM Associates.
- iii) The details of the company viz a viz status and % shareholding /partnership of Late Mr. Pascoal -

Name of the Entity	Status	Date of Incorporation	% Share holding of Mr. Pascoal	Registered office address
Paramount Buildwell Construction Pvt. Ltd.	Pvt. Ltd.	18-04-2005	25	Block - B, Wankhede Stadium, D Road, Churchgate, Mumbai - 400 020
Pastina Holiday Home Pvt. Ltd.	Pvt. Ltd.	22-12-1995	50	Pastina Villa, Dona Paula Circle, Panaji, Goa GA 403006
Pravar Trade Invest Pvt. Ltd.	Pvt. Ltd.	24-01-1997	NIL	Block - B, Wankhede Stadium, D Road, Churchgate, Mumbai - 400 020
Shivam Holiday Home	AOP	17-09-2006	50	Pastina Villa, Dona Paula Circle, Panjim, Goa
PVM Associates	AOP	01-04-2013	37.85	Ocean Park Residency, Opp. NIO colony, Dona Paula, Panaji, Goa

As your father was looking into the day to day transactions of all the companies and was authorized signatory singularly to transact and execute all the businesses / documents many of the important files/ documents were with him and the same are to be traced.

- 3) Further, you are requested to obtain the succession certificate, if not obtained till date, and furnish the copy of the same along with attested copies of death certificate to the respective company / AOP's chartered accountants / company Secretary enabling them to carry out the necessary formalities for transfer/winding up.

4) I once again request and reiterate that the time bound mediation by two mediators one appointed by each of us with a mandate to accept the verdict given by them is the only solution to close the matters pending for long.

5) Under the circumstances and premises as above your request for submitting the balance sheets/ bank statement of all the companies from the date of its inception is uncalled for. But however forwarding to you soft copies (pen drive) of the last audited balance sheets for the companies AOPs.

Hope you will do the needful at the earliest for the mutual benefit of our respective families.

Kindly acknowledge the receipt of the letter alongwith pendrive.

Thanking,

Vikram Shah

Encl: pen drive

C.c. 1. Adv. Hemkant Bhangui

2. Adv. Ratnak Rao

3 Adv. Harshad Bhadbade

Note: Pastina Holiday Home Pvt. Ltd Audited
Balance sheet is with you.

BY REGD A.D.

From : Mr. Riva Trindade
Dona Paula,
Tiswadi, Goa.
403 004.

Date : 12th Apr, 2023.

To,
Mr. Vikram Shah,
28, Capri 9,
Manav Mandir Road,
Malabar Hill,
Mumbai, 400 006

Ref : 1. My letter dated 18/03/2023 addressed to you.
2. Your communication dated 30/03/2023.

Sub : Reply to your above-referred communication dated 30/03/2023.

Dear Mr. Shah,

I am in receipt of your above-referred communication dated 30/03/2023 and in reply thereto would like to reply to you as under:

At the very outset, I reiterate my request made in my earlier letter dated 18/03/2023 for the Accounts and Bank Statements of the private limited companies and the AOP's as stated in my said letter and the repetition of the contents are avoided herein for the sake of brevity.

In specific regard to your above-referred communication dated 30/03/2023, the contents thereof are duly noted, I am however astonished to note that instead of furnishing the requested documents / details, you propose mediation. Though my knowledge of law is limited, you will appreciate that mediation requires that there be a dispute, and to the best of my knowledge, there is presently no dispute between us, unless you consider it otherwise.

Secondly, you will also appreciate that the Audited Accounts and Bank Statements of the private limited companies and the AOP's since inception (as requested by me) are important documents to understand and comprehend the financial position of the private limited companies and the AOP's, more so when the said private limited companies and the AOP's contain substantial and significant investments made by my

late father, and hence my request for the same is very much a valid and proper request and by no stretch of imagination be termed as "uncalled for" and dismissed at your end.

Further, it is noted that while on one hand you request me to provide the copy of, "succession certificate, death certificate to the respective company / AOP's Chartered accountants / Company Secretary enabling them to carry out the necessary formalities for transfér / winding up", on the other hand you refuse / deny my request for the Audited Accounts and Bank Statements of the private limited companies and the AOP's, which are the very document forming the foundation of such transfer / winding up.

Be that as it may, without delving more into the contentions made in your above referred communication, which clearly appears to be based on assumed facts and/or unfounded advice, I reiterate the request made in my earlier letter dated 18/03/2023 and once again urge and request you to provide the Audited Accounts and Bank Statements of the Private limited companies and the AOP's (as requested) without any further delay, so that things can move forward.

I do hope that you will see reason in my request, and oblige.

Warm Regards

Mr. Riva Trinidad

BY REGD A.D.

From : Mr. Riva Trindade
Dona Paula,
Tiswadi, Goa.
403 004.

Date : 4th July, 2023.

To,
Mr. Vikram Shah,
Block B, Wankhede Stadium,
D Road, Churchgate
Mumbai 400020,
Maharashtra

Ref : 1. My letter dated 18/03/2023 addressed to you.
2. Your communication dated 30/03/2023 and 01/04/2023.
3. Your communication dated 23/06/2023.

Sub : Joint Reply to your above-referred communications.

Dear Mr. Shah,

I am in receipt of your above-referred communication dated 30/03/2023, 01/04/2023 and 23/06/2023 and would like to reply to you as under:

At the very outset, I reiterate my request made in my earlier letter dated 18/03/2023 for the Accounts and Bank Statements of the Private Limited companies and the AOP's as stated in my said letter and the repetition of the contents are avoided herein for the sake of brevity.

You have for reasons best known to you avoided disclosing the Accounts and Bank Statements of the Private Limited companies and the AOP's to me till date leaving me with no option but to consider exploring available options to me

including legal options and hence the delay in responding to your above referred communications.

Nevertheless, with specific regard to your above-referred communication dated 30/03/2023, the contents thereof are duly noted, I am however astonished to note that instead of furnishing the requested documents / details, you propose mediation. Though my knowledge of law is limited, you will appreciate that mediation requires that there be a dispute, and to the best of my knowledge, there is presently no dispute between us, unless you consider it otherwise.

Secondly, you will also appreciate that the Audited Accounts and Bank Statements of the private limited companies and the AOP's since inception (as requested by me) are important documents to understand and comprehend the financial position of the the private limited companies and the AOP's, moreso when the said private limited companies and the AOP's contain substantial and significant investments made by my late father, and hence my request for the same is very much a valid and proper request and by no stretch of imagination be termed as "uncalled for" and dismissed at your end.

Further, it is noted that while on one hand you request me to provide the copy of, "succession certificate, death certificate to the respective company / AOP's Chartered accountants / Company Secretary enabling them to carry out the necessary formalities for transfer / winding up", on the other hand you refuse / deny my request for the Audited Accounts and Bank Statements of the private limited companies and the AOP's, which are the very document forming the foundation of such transfer / winding up.

Still further, for the sake of assumption, even for me to consider your proposition of "mediation", you will appreciate, that the Audited Accounts and Bank Statements of the private limited companies and the AOP's are the fundamental documents without which no reasoned decision can be arrived at.

Additionally, with specific regards to your above-referred communication dated 23/06/2023, the same was recently received by me and is being replied to without delay.

First and foremost the contents thereof are duly noted, however it is astonishing to note that you are requesting for the Succession Certificate to submit the same to the Chartered Accounts for further compliance, when you are avoiding disclosing to me the Audited Accounts and Bank Statements of the Private Limited companies and the AOP's requested by me, which are the very documents required to access the business and financial position of said Private Limited companies and the AOP's, only after which the I can be in an informed position to address the issue of further compliance as regards to these entities, which I am sure you will understand .

Be that as it may, without delving more into the contentions made in your above referred communications, which clearly appears to be based on assumed facts and/or unfounded advice, I reiterate the request made in my earlier letter dated 18/03/2023 and once again urge and request you to disclose /provide to me the Audited Accounts and Bank Statements of the Private Limited companies and the AOP's (as requested) without any further delay, so that things can move forward.

I do hope that you will see reason in my request, and oblige.

Warm Regards



Mr. Riva Trindade

From ;
Vikram Shah
Capri,9, Manav mandir Road,
Malbar Hill, Mumbai 400006
Date : 14/07/2023

REGD A.D.

To

Mr. Riva Trindade
Palbrika Mansion, Near Rosary School,
Dona Paula, P.O. NIL, Goa 403004

Sub: Your letter dated 04/07/2023.

Dear Riva Trindade,

Responding to your letter dated 04.07.2023 duly received on 11.07.2023.

At the outset, I am delighted to receive your communication which will enable us to go forward and conclude the matters pending for long.

Prime facie I disagree with your contention about, avoiding of disclosing of accounts, wherein in fact the audited accounts for the following entities for the financial year 2021-22 were submitted along with the communication dated 30/03/2023, which has been acknowledged. However, despite more than 3 months having passed I have not heard from you anything relating to this. The audited accounts and Balance Sheets for the current financial year shall be forwarded upon filing of respective Income Tax Returns.

In my communication, I had also specifically provided the details of commercial Ventures and the stake of your father in each of them although the same details were given many time before.

As you are well aware that all the Commercial Ventures by and between myself and your late father were based at Goa and all were manage and handled by your father being a Local Partner / Director and the records were also maintain at Goa office and I was broadly aware the transactions due to regular telephonic communication by and between me and your father.

Further almost all the documents / agreements etc. including cheques were singularly signed /executed by your father till his Demise.

As for the transactions after the demise of your father all the records are maintained at Goa office and you may avail any specific details require from Goa office and communicate with me for any specific details.

Further if you have any query you may approach the respective Chartered Accountants /Advocates along with your Chartered Accountant / Advocate either personally or telephonically.

I further acknowledge that, as stated in your letter, there is no dispute, but however, conclusion of the matters are pending which is the cause of my anxiety due to my age and also my apprehension that it will be difficult to safeguard/salvage our mutual interest due to delays and non-cooperation at your end as time is of essence in several of these ventures/commitments and all the joint efforts and reputation built by your late father and me will be wasted.

It is very strange that you are inquiring as to the need of the mediator as there is no dispute by and between us. Looking at the following narration it is always you who have approached the mediator from time to time but without giving any mandate for accepting their verdict.

I hope you will appreciate that I have tried my best to explain the nature of business activities and the manner which the unfinished business can be concluded to all the persons /mediators suggested by you but somehow you did not heed to any of their inputs.

It is necessary and pertinent to put on record the following facts to narrate the efforts by me besides Mr. Ram Daryanani, Mr. Kumar Vidhani, Mr. Harshad Bhadbhade, Mr. Raunak Rao, Mr. Bhangui to persuade you to co-operate and conclude the unfinished business left by your late father in respect of several joint commercial ventures.

- 1) After the demise of your father on 17th January, we had our first meeting in the last week of January 22 with you in presence of Mr. Dias, Manager of the various business activities and close associate of

your father Late Mr. Pascoal during his last two years and one Mr. Jimmy Fernandes at the Miramar office wherein you were explained the status and commercial aspects of the various joint business Activities by and between myself and your father and also provided you with the details through Mr. Dias. Further myself had categorically informed that owing to the age factor and family request I desire to wind up all the business activities at Goa and seeking for your co-operation for the same.

- 2) Another meeting between us took place after approximately 15 days of the above meeting at the site office at Bambolim in presence of Mr. Ram Daryanani, and Mr. Kumar Vidhani both being very close and dear friends and well wishers of late Mr. Pascoal. The meeting was specially held to explain to you about financial consequences of excess withdrawal by your father late Mr. Pascoal in one of the company M/s. Paramount Buildwell Construction Pvt. Ltd. However, you ignored the advice of all and has not done anything in respect thereof till date and there is no communication from you on this account.

- 3) Somewhere in the month of May /June 2022 one Mr. Wilbur Menezes (Advocate) through a close business associate Mr. Rajan Bhavnani approached me at your instant. Mr. Wilbur in presence of Mr. Rajan Bhavnani stated that you had approached him to understand and resolve certain of your doubts viz. Business activities by and between myself and by your father late Mr. Pascoal. I accepted his request and furnished to him the certain details with the further request to Mr. Wilbur to obtain written mandate from you to conclude the matters as finalized by him. However, it, was informed by Mr. Wilbur that you were not agreeable for giving written mandate although I, had agreed to give the mandate. The matter remained unconvulsive as Mr. Wilbur informed Mr. Bhavnani that you have stopped responding to his calls / messages. Again, there has been no communication from you as to why you refused to give a formal mandate after approaching Mr Bhavnani with a request to resolve and conclude the matters between us.

- 4) Myself along with my wife Mrs. Varsha shah had meeting with your entire family ie. Your mother Mrs. Albertine Trindade and your wife Mrs. Karita Tridnade at your residence at Dona Paula. Once again in the said meeting all the present were explained by me the status of various business / properties and also explained that the time is of essence for several commitments made by me and your late father Mr Pascol, otherwise it will cause a great deal of monetary losses not only to us but also to associated persons without any fault of theirs. However there has been no communication/response from you.
- 5) A common friend and the lawyer, Mr. Harshad Bhadbhade who had defended us in various litigations filed by the components of comunidade of Bambolim before the High Court and Supreme Court in respect of jointly owned properties viz. survey no. 93/2, 93/3 & 93/4 at viilage Bambolim, had several meetings with you and explained to you to conclude the matters at the earliest for the common interest.
- 6) At the request of Mr. Harshad, I handed over my 50% shares, my resignation from directorship in one of the company M/s. Pastina Holiday Home Pvt. Ltd. without receiving any consideration in respect thereof to initiate the process of winding up. But however, the move failed to avail any positive response from you. As a matter of fact in spite of explaining you refused even to sign the balance sheet of the company resulting into regulatory non compliance of non filing of ROC returns in time for the first time since the inception of the company.
- 7) Further the Advocate Mr. Raunak Rao, who is locally representing our various companies as well as your late father in his personal matters for the court matters for more than last 12 years, due to non - cooperative attitude of you sent message that he do not want to continue to represent us and wants to withdraw himself. Upon receiving such message you along with one Mr. Nazreth, being uncle of your wife met Mr. Raunak at his office wherein upon discussion

amongst you all Mr. Raunak called upon me for joint meeting at his office on the next day to which I readily agreed and travelled from Mumbai specifically for the proposed meeting.

- 8) On the day of the meeting you called me saying that you do not want to have the meeting at the office of Mr. Raunak as decided but would like to meet at your office at Dona Paula and without presence of Mr. Raunak. After initial hesitation I said that I will discuss the matter with Mr. Raunak and decide and accordingly I called Mr. Raunak to inform about your reluctance for the meeting at his office. Mr. Raunak told me to hold the meeting without him being present as it was more important to resolve the issues than personal egos.
- 9) I along with Mr. Shekhar Patki, my son-in-law, came to the your office wherein Mr. Nazreth was also present. During the discussion I again requested you to atleast sign the balance sheet of M/s. Pastina Holiday Home Pvt. Ltd. to avoid regulatory non compliance and any penal consequences for not filing the same in time. You stated that you were not signing the same because according to you my credit balance is Rs. 40 lacs viz a viz the credit balance of your father being far less. I asked you to get the balance sheet and verify the facts to which you said that the balance sheet is lying at your home. You were requested by all to get the same and verify the correctness. You went home and returned back empty handed saying that you could not tress it. The matter of fact is that the balance sheet was wrongly read by you but in spite of the same you have till date not signed the same. This again demonstrates your lack of co-operation without appreciating the consequences of it.
10. During the meeting with Mr. Raunak you were also requested to sign an Application to be filed before the High Court for extension of time limit which also you refused to sign without assigning any reason. One more example of non co-operation by you without assigning any reason.

11. It is pertaining to note here that due to ROC directive your father was disqualified to be Director in any of the companies and therefore he had appointed you as an additional Director in his place in the companies viz. Paramount Buildwell Construction Pvt. Ltd., Pastina Holiday Home Pvt. Ltd. etc but had not incorporated you in AOPs viz M/s. Shivam Holiday Home and PVM Associates.
12. Pursuant to the meeting at your office, me and Mr. Patki met Mr. Nazreth at his work place in Mumbai to persuade to you to conclude the matters as discussed. However, Mr. Nazreth informed that he had offered to you the services of his CA in Mumbai but you did not communicate with him too and therefore he expressed his helplessness in the matter. All the efforts made vide those meeting did not produce any conclusion due to your non cooperation
13. Due to the aforesaid events and Mr. Raunak not willing to represent you in various of your personal matters, you then approached Advocate Mr. Hemkant Bhangui being advocate and a very good friend of your late father to assist and help you to resolve your confusions and matters.
14. Although Mr. Bhangui is not practicing at Panaji and also very busy in his own practice but for the sake of his old friendship with your late father and family agreed to mediate and accordingly called me for meeting at his office at village "Curchorem" being 60 kilometer away from Panaji.
15. Being willing, I readily agreed for the meeting and the mediation by Advocate Mr. Bhangui as he is aware of most of the business transactions by and between me and your father.
16. The meeting at the Advocate Bhangui's office was at your behest and Mr. Bhangui explained to you in details viz a viz the business activities

and the brotherly relation between your late father and me. You had raised several queries in the meeting which were very properly explained and it appeared to me and to Mr. Bhangui that you would conclude the matters under his advice and guidelines.

17. Upon query by Mr. Bhangui you expressed your desire to retain some of the common properties/ assets viz. chiplun property (joint venture), Pastina Holiday Home and guest house at Bambolim to which I consented and accepted to appropriate the consideration thereof against the other properties / assets to be retained by me. It was further decided to prepare documentation in respect thereof and to handover the executed documents to Mr. Bhangui to be kept in Escrow until the finalization of the account/ payment of consideration to each other as the case may be.

18. Advocate Bhangui also in the same meeting inquired with you that "has your father has made any WILL" and if not it is very necessary for you to obtain succession certificate as the same shall be required to effectively transfer of assets /properties in the name of the successor. You had categorically stated that you have initiated the process of obtaining the succession certificate and shall forward the copy as and when the same is received. To best of my knowledge till that there is no progress in respect thereof.

19. On conclusion of the meeting Advocate Bhangui said that he will prepare an MOU containing the terms of settlement as discussed and the same will be executed by you and myself and shall be kept in escrow with Mr. Bhangui till the finalization of accounts.

20. Advocate Bhangui also requested you to approach and apologies Mr. Raunak and handover all the matters back to him and he will also personally request Mr. Raunak to represent you and also informed you to execute documents as forwarded by Mr. Raunak forthwith save and

except any commercial document. To best of my knowledge you have ignored his advice.

21. After couple of days on enquiry by me with Advocate Bhangui, Advocate Bhangui said that you are not responding to his calls and messages and therefore he cannot and does not desire to pursue the matter further. But however, he has prepared the MOU as discussed and the print copy of which I have handed over to you on 28/03/2023 to conclude the matters accordingly. Again, example of lack of cooperation from you.

22. Failing to understand your approach/ attitude and non cooperation with every person viz Mr. Ram Daryanani, Mr. Kumar Vidhani, Mr. Harshad Bhadbhade, Mr. Raunak Rao, Mr. Bhangui and not concerned about regulatory non-compliance, I lost the hope and had left the matters to the destiny but however due to insistence of one Mr. Rahul Shah, also being stake holder and affected party, I agreed for meeting with you along with one of the associate of Mr. Rahul Shah, also your cousin viz. Mr. Agnelo and accordingly meeting was held between myself, you, Mr. Ram Daryanani and Mr. Agnelo at Bambolim office on 28-02-2023 but the matters still remain unconclusive due to your non cooperation.

23. I reiterate your non-cooperation to commitments made by me and your late father and by insisting for records from the date of inception of the entities whose transactions as well as accounts have been signed by your late father as a working partner/director is uncalled for as this is resulting in to monetary as well as reputation loss to me, you/your late father as well as people to whom we (me and your late father) have made commitments

24. I sincerely hope that you would have participated in the business activities along with your father, as per his wish, which would have helped us as well yourself and we would have smoothly concluded

business activities and both our respective families would have been benefited mentally as well as financially.

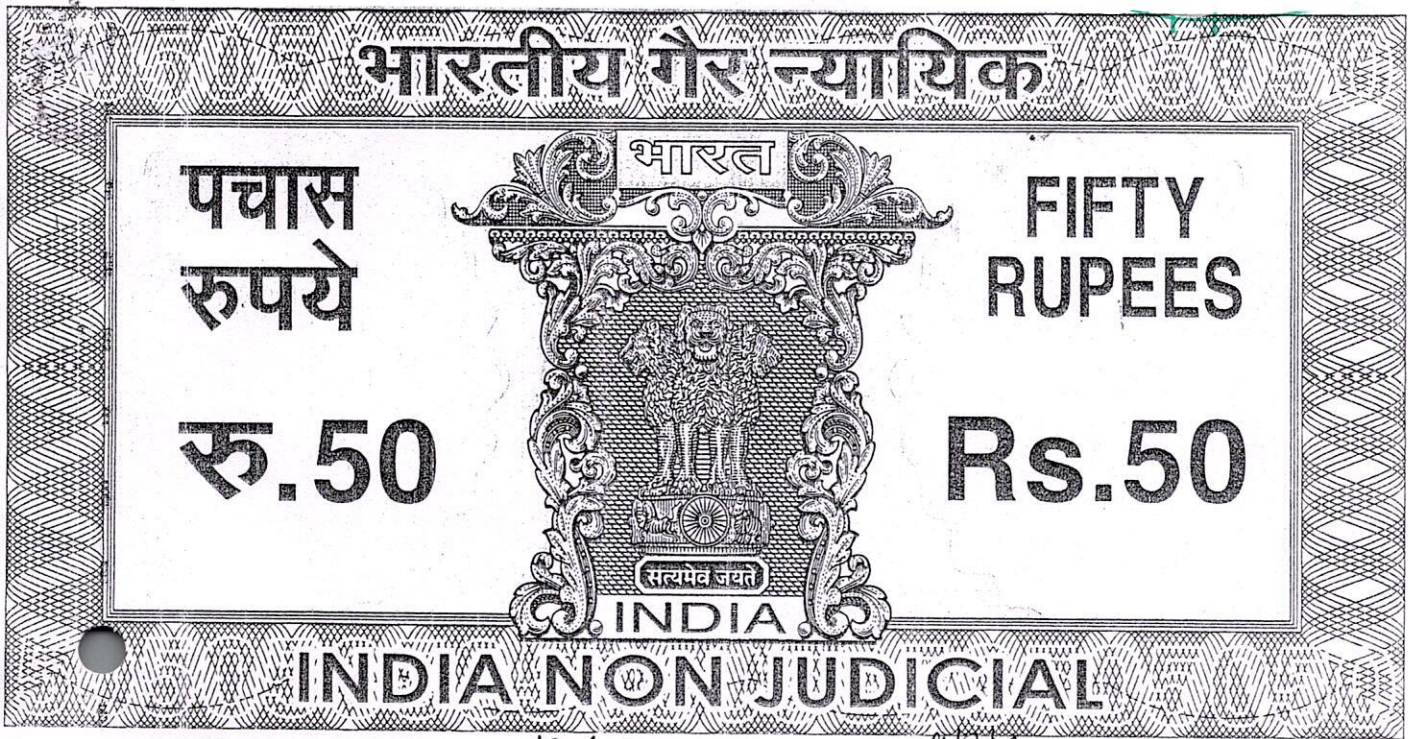
25. I, do hope that you will realize the situation and shall co-operate to conclude the pending business for mutual benefits/interest of our respective families.

26. As I once again say that it shall be very difficult for me and my family to safeguard/salvage the benefits resulting out of our joint efforts for past 25 year in the event of continued noncooperation at your end.

Thanking you

Sd/-

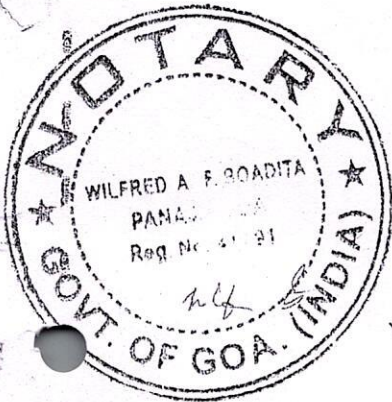
Vikram Shah.



गोवा GOA

Serial No. 76 Place of Vendor, Panaji Date 2/4/13
 Value of Stamp Paper _____
 Name of Purchaser _____
 Residence _____ Name of Father _____
 Purpose _____ Transacting Parties : _____

332919



Sign of Stamp Vendor
 Mangala N. Karaparkar
 License No. AC/ST/PRIVE/11747/99

Sign of Purchases



ARTICLES OF ASSOCIATION

THESE ARTICLES OF ASSOCIATION made this 1st day of April in
 the year Two Thousand Thirteen

भारतीय गैर न्यायिक

पचास
रुपये

रु.50



FIFTY
RUPEES

Rs.50

INDIA NON JUDICIAL

गोवा GOA



Serial No. 178 Place of Vendor, Panaji, Date 12/11/99
Value of Stamp Paper _____
Name of Purchaser _____
Residence _____ Name of Father _____
Purpose _____ Transacting Parties : _____

332921

Sign of Stamp Vendor
Mangala N. Karapurkar
License No. ACISTPIVEN/747/99

Sign of Purchaser

BETWEEN

1. **MR. PASCOAL TRINDADE**, son of late Agostinho Trindade, aged about 71 years, married, businessman, Indian Inhabitant and having his office near N. I. O., Dona Paula, Goa, hereinafter referred to as the Party of the **FIRST PART** (which expression shall unless repugnant to the context or meaning thereof, mean and include his wife Smt. Albertina Trindade, legal heirs, executors and administrators);

2. **MR. VIKRAM SHAH**, son of Chinubhai Shah aged about 63 Years, Indian Inhabitant residing at 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, 400006 hereinafter referred to as the Party of the **SECOND PART** (which expression shall unless repugnant to the context or meaning thereof, mean and include his legal heirs, executors and administrators);

3. **MR. MURLIDHAR SADARANGANI**, son of Shamdas Jetaram Sadarangani aged about 54 Years, Indian Inhabitant residing at S-3, Eden Hall, Dr. Annie Besant Road, Worli, Mumbai - 400018, hereinafter referred to as the Party of the **THIRD PART** (which expression shall unless repugnant to the context or meaning thereof, mean and include his legal heirs, executors and administrators);

WHEREAS By the Deed of Sale dated 25th April 2006 registered with the Sub- Registrar of Assurances at IIhas, District of North Goa under serial no. 1170 dated 02.05.2006 made by and between MRS. DIONISIA DIAS E MERGULHAO alias MRS. DIONISIA DIAS therein referred to as the Vendor of the One part and MR. PASCOAL TRINDADE the Party of the First Part herein, therein referred to as the Purchaser of the Second Part, the Vendor therein conveyed and transferred unto the Purchaser therein (the party of the First part herein) all that piece and parcel of land bearing S. no. 93/3 situated at BAMBOLIM known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR" admeasuring about 26825 Sq. mtrs. within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka Tiswadi, Registration sub-Districts of IIhas, District of North Goa, more particularly described in the Schedule I hereunder written (for sake of brevity, hereinafter referred to as "Schedule I Property") at or for the consideration therein paid by the Purchaser therein to the Vendor therein;

WHEREAS By the Deed of Sale dated 25th April 2006 registered with the Sub- Registrar of Assurances at IIhas, District of North Goa under serial no. 1170 dated 2-5-2006 made by and between MRS. DIONISIA DIAS E MERGULHAO alias MRS. DIONISIA DIAS therein referred to as the Vendor of the One part and MR. PASCOAL TRINDADE the Party of the First Part herein, therein referred to as the Purchaser of the Second Part, the Vendor therein conveyed and transferred unto the Purchaser therein (the

party of the First part herein) all that piece and parcel of land bearing S. no. 93/4 situated at BAMBOLIM known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR" admeasuring about 35075 Sq. mtrs. within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka Tiswadi, Registration sub-Districts of IHas, District of North Goa, more particularly described in the Schedule II hereunder written (for sake of brevity, hereinafter referred to as "Schedule II Property") at or for the consideration therein paid by the Purchaser therein to the Vendor therein

(For the sake of brevity, the properties described in the Schedule I and the Schedule II written hereunder are hereinafter collectively referred to as the "said Properties")

WHEREAS the Parties of the Second Part and Third Part approached the Party of the First Part with a proposal to develop the said Properties by pooling in their resources together;

WHEREAS the parties hereto felt that if their resources are pooled together, they can be put to greater common advantage and accordingly party of the Second & Third part advanced a sum of Rs.71,00,000/- and Rs.68,50,000/- respectively to the party of the First part from time to time for the purpose of obtaining various clearances / sanctions / NOCs / license and payment towards legal and professional charges.

WHEREAS the parties hereto, after mutual discussions have agreed to associate together to form an Association of persons with a view to earn income from development and or sale of the Schedule - I and II properties and that they shall not form a partnership; and

WHEREAS the parties hereto deem it expedient to reduce the terms governing their association into writing;

AND WHEREAS it is agreed that the terms and conditions unless otherwise changed by execution of a fresh deed of articles of execution or execution of addendum to this deed of Articles of Association in writing and duly signed by all the members shall be as follows:

**NOW THIS INDENTURE WITNESSETH AND THE PARTIES HEREBY
MUTUALLY AGREE AS FOLLOWS:**

1. The Parties hereto hereinafter are individually referred to as Member and collectively as the 'Members'. The Members have formed this Association with the common purpose of jointly developing and or otherwise selling the said Properties more particularly described in the Schedule I and Schedule II written hereunder.
2. This Agreement shall come into force with effect from 1st April 2013.
3. The activities of the Association shall be carried on under the name and style of M/s PVM Associates (hereinafter referred as 'Association').
4. The books of account of the Association shall be closed on 31st March 2014 for the first time and thereafter the books of accounts shall be closed on 31st March of every year.
5. The Office of the Association shall be situated at the office of the party of the First Part situated at Ocean Park Residency, Opp. N.I.O Colony, Dona Paula - Goa 403004 Dona Paula, Panaji - Goa, and branch offices at such other place/s as may be mutually agreed upon by the parties hereto.
6. The executant signatories of this Deed shall be the first members of this Association, M/s. PVM Associates. These first members may, by their unanimous decision in writing and by execution of a fresh deed of articles of execution or execution of an addendum to the Articles of Association, admit any other new members. Any individual including minor, HUF, firm, body or association of persons whether incorporated or not, trust, company, corporation, co-operative society, body corporate will be eligible to be a member of this Association. There shall be no restriction on the number of new members that may be admitted.



7. The capital of the Association shall be Rs.3,25,00,000/- which shall be contributed by all the three members of the Association in accordance with their respective profit sharing ratio specified in clause 14(a) of this Deed. As such the capital to be contributed by each of the three parties will be as under :-

1)	Mr. Pascoal Trindade	1,23,01,250/-	37.85%
2)	Mr. Vikram Shah	1,23,01,250/-	37.85%
3)	Mr. Murlidhar Sadarangani	78,97,500/-	24.30%

The capital can be contributed either by cash or by way of any asset.

8. The Party of the First Part, by way of his share of contribution to the capital of the Association hereby brings and introduces into the Association the said Properties i.e. the properties more particularly described in the Schedule I and Schedule II written hereunder. The said Properties will be valued at Rs. 3,09,50,000/- and accordingly recorded in the books of account of the Association. The capital account of the party of the first part shall be credited by an amount of Rs.1,23,01,250/-. The balance amount of Rs.1,86,48,750/- will be credited to the current account of the party of the First Part. The said Properties having been introduced in the Association have ceased to be the personal properties of the Party of the First Part and have become the properties of the Association. The Party of the First Part now holds the said Properties for and on behalf of the Association.

9. The Party of the Second Part and the Party of the Third Part have financed for acquisition / development of Schedule I and II properties over the years to party of First Part and their contribution is as under:

Mr. Vikram Shah	Rs. 71,00,000/-
Mr. Murlidhar Sadarangani	Rs. 68,50,000/-

The Party of the First Part shall refund these amounts to the Party of the Second Part and the Party of the Third Part and the Party of the Second Part and the Party of the Third Part shall thereupon bring in these amounts as their contribution to the capital of the Association.

It is expressly agreed that balance of capital contribution of the parties of the Second and Third Part i.e. Rs.53,01,250/- and Rs.10,47,500/- shall be made by them within 15 months of the execution of this Article of Association.

10. It is hereby agreed that further funds required to incur expenses for the development, execution of a project or sale of the said Properties shall be contributed by all the Parties hereto in the proportion of their respective share in profit/loss specified in the clause 14(a) or 14(b) or 14(c) Or 14(d) hereinbelow, as the case may be, save and except if any funds are required to incur any expenditure / cost or to make payment for removing encumbrance, claim, demand on the said Properties by the Comunidade of Bambolim then in such event all funds required for the same shall be brought in by the Parties of the First Part and Second Part equally and the Party of the Third part shall not be required to bring in any funds for the same.

11. The Members of the Association shall be entitled to the following rights:
- i. Share in income, right to receive and to withdraw the said income;
 - ii. Share in the surplus or accretion or appreciation or depletion or diminution in the value of the assets or share the assets at the time of the distribution of assets in specie on the dissolution which shall be in accordance with the provisions of this Agreement;
 - iii. The Members may from time to time by unanimous decision in writing agree to increase or reduce or repay the capital;
Further any such act referred to in clause (i) and (ii) above shall be in the form of a resolution in writing duly signed by all the members of this Association;

12. Unless the Members unanimously agree otherwise, all withdrawals by the Members shall be in proportion of their respective share in profit/loss specified in clause 15 hereinbelow.

✓ 13. Liability of Members: Subject to the provisions of the clause 15 of this Agreement, each Member shall be jointly and severally liable for all the liabilities of the Association.

14. It is hereby agreed that the Schedule II property be notionally be divided into three parts as under:

- (a) Land admeasuring approximately 14,500 Sq. meters and forming a part of the Schedule II Property delineated on the plan of the Schedule II Property annexed hereto and surrounded by green colour boundary line herein referred to as the Schedule IIA Property;
- (b) Land admeasuring approximately 13,500 Sq. meters and forming a part of the Schedule II Property delineated on the plan of the Schedule II Property annexed hereto and surrounded by red colour boundary line herein referred to as the Schedule IIB Property;
- (c) Land admeasuring approximately 4,900 Sq. meters and forming a part of the Schedule II Property delineated on the plan of the Schedule II Property annexed hereto and surrounded by blue colour boundary line herein referred to as the Schedule IIC Property;

15. The profit/loss of the year shall be determined as per the prevailing accounting standards principles after meeting all the expenses, outgoings, depreciation, taxes etc. Separate accounts will be maintained in respect of development and sale of each of Schedule I, IIA, IIB & IIC Properties and profit arising therefrom shall be determined each year and separate Profit and Loss and Balance Sheet shall be drawn. Such profit arrived at in respect of each of Schedule I, IIA, IIB & IIC Properties shall be shared in the following ratio by the members of the Association.

- (a) Profit/Loss arising from the development and sale of Schedule I, property shall be shared by the members of the Association in the following ratio -

	Schedule I
i. Mr. Pascoal Trindade	37.85 %
ii. Mr. Vikram Shah	37.85 %
iii. Mr. Murlidhar Sadarangani	24.30 %

- (b) Profit/Loss arising from the development and sale of Schedule IIA, Property shall be shared by the members of the Association in the following ratio -

	Schedule IIA
i. Mr. Pascoal Trindade	37.85 %
ii. Mr. Vikram Shah	37.85 %
iii. Mr. Murlidhar Sadarangani	24.30 %

- (c) Profit/Loss arising from the development and sale of Schedule IIB Property shall be shared by the members of the Association in the following ratio -

	Schedule IIB
i. Mr. Pascoal Trindade	49.5 %
ii. Mr. Vikram Shah	49.5 %
iii. Mr. Murlidhar Sadarangani	1.0 %

- (d) Profit/Loss arising from the development and sale of Schedule IIC Property shall be shared by the members of the Association in the following ratio -

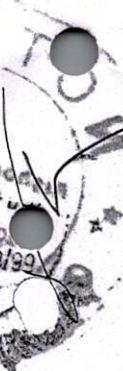
	Schedule IIC
i. Mr. Pascoal Trindade	5 %
ii. Mr. Vikram Shah	5 %
iii. Mr. Murlidhar Sadarangani	90 %

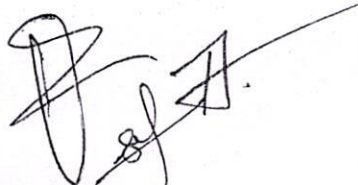
Subsequent to such allotment and sharing of the profits/losses in respect of the profits of each of the schedule properties mentioned above, the Profit & Loss Accounts and Balance Sheets shall be consolidated to form a consolidated Profit & Loss Account and Balance Sheet of the Association.

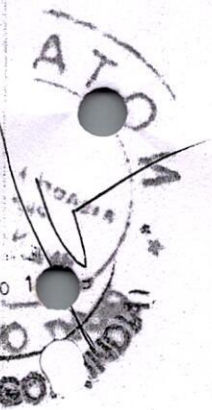
16. It is hereby agreed and accepted by the Members that it shall be the equal responsibility of the Parties of the First Part and Second Part to ensure that the said Properties are free from encumbrance, claim of, demand of or from Comunidade the Bambolim and if the Association is required to incur any expenditure/cost or make payment for removing any such encumbrance, claim, demand of the said Comunidade the Bambolim, though forms an expenditure of



the Association deductible from the profit of the Association, it shall be borne only by the Parties of the First Part and Second Part equally. Further it is agreed that if the Association is required to part with any land it shall be out of Schedule II B Property only and not out any other of part of the said Properties. Such amounts or cost of the land to the Association shall be debited to the capital account of the Parties of the First and Second Parts equally and the profit of the Association for the purposes of distribution of profit amongst Members shall be determined without deducting such amount or cost of such land to the Association.

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17. The individual shares of the respective Members in the assets of the Association shall always be as per the profit sharing ratio specified in clause 15 (a), (b), (c) and (d) above in respect of schedule I, IIA, IIB & IIC properties respectively..
 18. On dissolution of the Association or for the purpose of dissolution, the assets as existing on the date of dissolution may be distributed in specie amongst the Members as on such date of dissolution. On dissolution, all liabilities shall be discharged or if the Members deem it necessary, they may mutually adjust and settle their rights on money value basis. The Members shall respectively be entitled to receive and be paid the capital contributed by them and the amount standing to the current account of the Members shall be returned to the respective Members of the Association and the residue and/or surplus assets shall be distributed amongst the Members in accordance with clause 17 above.
 19. The assets of the Association may be distributed either wholly or partially at any time prior to the dissolution of the Association by a unanimous decision as writing in the form of a resolution duly signed by all the members of the Association at a duly convened meeting thereof and such distribution may be partial as to assets and also partial as to the Members or Member of the Association. It is agreed that the distribution provided hereby could be undertaken from time to time (and also in favour of any one or more number of Members).



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20. All decisions in regard to the affairs of the Association including entering into partnership, making of investments, withdrawing of investments, starting any new business shall be taken by the unanimous decision of the Members in writing and in the form of a resolution duly signed by all the members.
21. The resolution of the Members may be passed at a meeting of the Members duly called or by a circular resolution. No resolution shall be valid unless it is approved and passed by all the Members unanimously. Any resolution duly signed by all the Members shall be valid as if it was passed in a meeting of the Members. A Register of Resolution shall be kept by the Association and all such resolutions shall be incorporated chronologically in such Register.
22. Bank Account or Bank Accounts of the Association may be opened at any time after formation of the association invariably in the name of the association i.e. M/s. PVM Associates. The operation of the bank account / accounts shall be jointly by all the three parties to this Article of Association. An authorisation to this effect shall be furnished to the bank / banks upon opening the bank account / accounts. Any modification of this clause can be made by an unanimous resolution in writing by all the members of this Association.
23. Any sale deed to be executed on behalf of the Association in favour of prospective purchases of plots / apartments / villas or any other property owned by the association shall be invariably signed and executed by all the Parties to this Agreement. Any modification in this clause can be made by an unanimous resolution in writing by all the members of the Association.
24. Proper books of accounts shall be kept as per the accounting principles wherein shall be entered all particulars of money, goods, effects, belonging to or owing to or by the Association or paid, received, sold or purchased in the course of the activity of the Association, and of all such other transactions, matters and things relating to the activities of the Association. The said books of account together with all letters, papers or writings concerning or belonging to the Association, except such are required to be kept at the bankers shall be kept at the office of the Association, and each
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Member shall at all times have free access to and right to inspect and make copy of the same.

25. No Member acting alone, without specific authorisation of all the members in writing to act on behalf of the association shall, at any time by his act or omission, ever be considered to be doing acts on behalf of any other Member or Members, so as to bring into existence, by implication or otherwise, the contract of agency between the Members, or incur any liability to the Association.

26. This Agreement is not intended and does not bring into existence the relationship of the partnership between the Members and is purely an Association i.e. voluntarily coming together of the Members for the purpose of earning income. No Member by this Agreement is or shall become the agent of the association or of the other Member or Members unless all the members are acting together.

27. Notwithstanding anything else contained in this Agreement, so long as there are at least two Members of the Association, death, retirement, insolvency liquidation, winding up, dissolution or ceasing to be a member for any reason whatsoever of a Member shall not dissolve or discontinue the Association but the surviving or continuing Members shall be entitled to continue to carry on the activities by admitting new members or member or otherwise.

28. In the event of the death of a member, his legal heirs will have the choice to become members of this association and their becoming members shall be automatic unless the legal heirs specifically in writing intimate the Association of their decision not to become members within a period of 2 months of the demise of the member. The legal heirs becoming members of the association will inherit all the rights and liabilities of the deceased member and also the balance standing at the capital and current accounts of the deceased member and also the share of profit or losses hitherto shared by the deceased member.

29. Death, retirement, removal, insolvency, liquidation, winding up, dissolution or ceasing to be a member for any reason (otherwise than by reason of dissolution of this Association) the Member ceasing to be a member or in case of death of the Member his legal heirs shall be entitled to the balance standing at the capital and current account as on such date.

Such amount due shall be paid without interest to the legal heirs of the deceased Member or to the Member, as the case may be, within expiration of the period of 6 months from the date of death, retirement, removal, insolvency, liquidation, winding up, dissolution or member ceasing to be a Member for any reason (otherwise than by reason of dissolution of this Association).

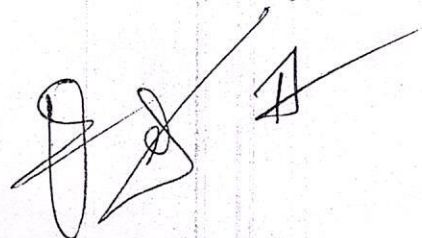
However if the Association is not able to pay the balance standing at the credit of capital and current account of such members within 6 months, the member or legal heirs of the deceased member as the case may be shall be entitled to simple interest on such balance at 12% per annum till the date of payment.

This clause shall however not apply in case the legal heirs of the deceased member who choose to become members of the association join the association as members.

The remaining members may, however by their unanimous decision in writing by way of resolution, decide to pay any amount over and above the balance outstanding at the capital and current accounts of such member or legal heirs in respect of the good will of the association or the appreciation in the value of the land and assets owned by the Association. Such member or legal heirs shall however not have any right to make such claim.

30. No Member shall, without the unanimous consent of all other Members in writing in the form of a resolution be entitled to sell, alienate, transfer, assign, gift, mortgage or charge his right, title, interest or any part thereof in the Association as Member.

31. Any Member committing breach of any of the stipulations provided in this Agreement, shall indemnify the other Members for all losses.

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32. Any Member or Members specifically authorised in this behalf by all the members of the association shall have all powers to file and defend suits, appeals, applications etc. to declare, sign and verify all complaints, written statements, memos of appeals, cross objections, applications, affidavits etc. and to accept writ of summons, notices etc. and to appear at any place in the Union of India before any Court, Tribunal, Tax Authority, Customs Authority, Port Authority, Government Authority, Municipal or other Local Authority or any other Authority, Officer or Officers and before all Authorities, Officers and Tribunals, Commissions and before any Registrar, Joint Registrar or sub-Registrar of Assurances at any place or places in the Union of India and to present and lodge any documents or document for registration and to admit execution thereof and to compound all suits and other proceedings and to submit all difference, disputes and/or demand to arbitration and to execute all release and discharges and to do all other things relating to the matter and funds of the Association.
33. All the Members may, by unanimous decision in writing, formulate a scheme or schemes for the management of the business and the property of the Association and may frame rules and regulations and from time to time to achieve the aims and objects of the Association hereby created. All the members may appoint and authorize in writing one or more out of them or any other person or persons as manager or managers to look after, and manage the affairs, activities, funds, properties of the Association in accordance with the directions given or to be given by the Members from time to time.
34. All the matters which are not stipulated otherwise in this Agreement shall be decided jointly by the all Members of the Association by a resolution in writing duly signed by all the members.
35. In the event of any dispute between the members of this association or between the members and the legal heirs of the association or between the legal heirs themselves the matter shall be referred to arbitration according to Indian Arbitration Act than in force.
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SCHEDULE - I

(The SCHEDULE I PROPERTY hereinabove referred to)

All that property bearing Survey No. 93/3 situated at Village Bambolim known as "BAILEM FONDIEM", "SAVELI GALI" OR "OHOR" admeasuring 26,825 sq. mtrs. approximately within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka of Tiswadi, Registration sub-Districts of Ilhas, District of North Goa and bounded as follows:

On the North: By Plot surveyed under No.103.

On the South: By Plot surveyed under No.94.

On the East: By Plot surveyed under 93/1.

On the West: By the Plot of G.M.C. surveyed under Nos. 102/3 & 104

SCHEDULE-2

(The SCHEDULE II PROPERTY hereinabove referred to)

All that property bearing Survey No.93/4 situated at Bambolim known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR", zoned as orchard, admeasuring 35,600 m² approximately, within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and neither described in land registration office nor enrolled under matriz and bounded as follows:

North: By Bambolim Village road and plot surveyed under no. 107/7-11

South: By plot surveyed under No.103

East: By plot surveyed under No.93/1

West: By plot surveyed under Nos.93, 106,107/1, 2, 3, 5 and 6 Schedule 2A, 2B and 2C to be incorporated.

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET THEIR
RESPECTIVE HANDS THE DAY AND THE YEAR FIRST
HEREINABOVE MENTIONED:

SIGNED AND SEALED AND
DELIVERED BY THE
WITHIN NAMED MR. PASCOAL
TRINDADE AND PARTY OF THE
FIRST PART IN THE
PRESENCE OF

1. Manuel C. Dias

Manuel

2. *Jeh* JUJE FERNANDES

*Identity on production of PAN CARD
ADPPP 5891L Chief Commissioner of
Income Tax K & L*

[Signature]

SIGNED AND SEALED AND
DELIVERED BY THE
WITHIN NAMED MR. VIKRAM
SHAH AND PARTY OF THE
SECOND PART IN THE
PRESENCE OF

1. Joyce Pereira

Joyce

2. Brenda Po

Brenda

*Identity on production of PAN CARD
ADSPS 2978H Govt of INDIA*

[Signature]

SIGNED AND SEALED AND
DELIVERED BY THE
WITHIN NAMED MR.
MURLIDHAR SADARANGANI
AND PARTY OF THE THIRD
PART IN THE
PRESENCE OF

1. Marjula Kusunoor

MKusunoor

2. Sulochana Fatarpekar

*Identity on production of PAN CARD
AAHPS 8209A Govt of INDIA*

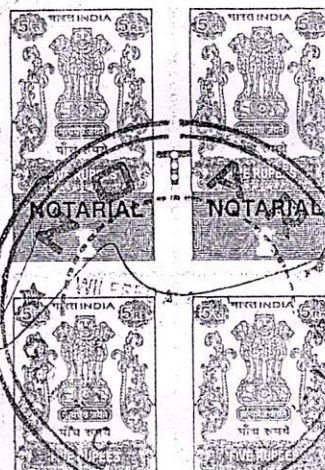
[Signature]

EXECUTED BEFORE ME
WHICH I ATTEST

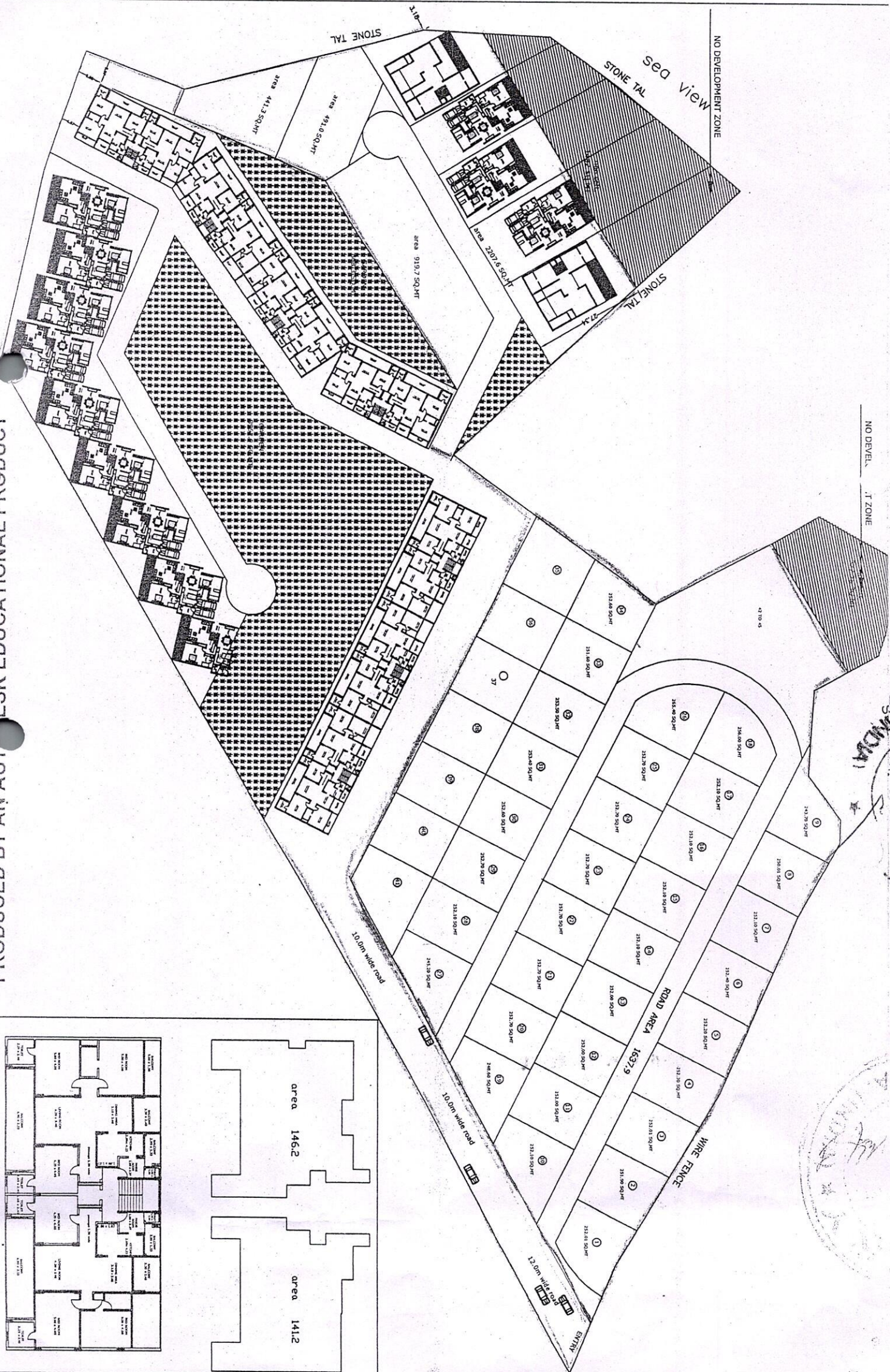
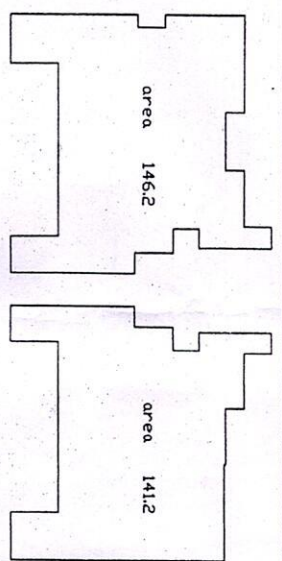
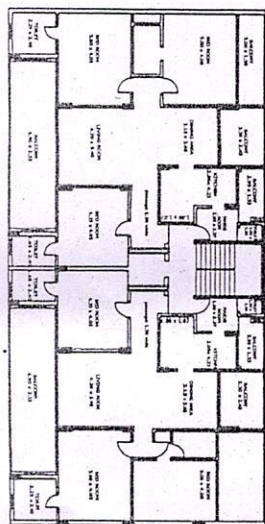
W.F. B.
WILFRED A. F. BOADITA
NOTARY
PANAJI

STATE OF GOA (INDIA)

Page 6464/2013
Date 12-04-2013



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Reg. No 55410
Dated 25-4-2014

TRUE COPY

NQ

Kishor N Fugro
NOTARY
PANAJI
STATE OF GOA (INDIA)